BRENDAN NGEHSI NEWANFORBI
[CURRENT SERVICE ADDRESS]
[TELEPHONE] | [EMAIL]
Petitioner, in propria persona

SUPERIOR COURT OF CALIFORNIA
COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner,
v.
CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; and DOES 1–10, Respondents.

Case No. 26CV191136 | Department 25
Assigned to: Hon. Jenna M. Whitman

**DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF MOTION FOR WRIT RELIEF**

I, Brendan Ngehsi Newanforbi, declare:

1. I am Petitioner. The statements below concern my own experience, records I prepared or received, and documents I can identify. I do not have personal knowledge of CHP's undisclosed deliberations. I would testify to the facts stated below if called.

2. On November 1, 2024, I was in a rented Tesla Model Y on the shoulder of eastbound Interstate 580 near Isabel Avenue in Livermore. I had stopped because I was tired and fell asleep. The officers contacted me there. I described my trip and why I had stopped. My account of tiredness is not an expert opinion about a blood-alcohol concentration.

3. I prepared the transcript submitted as Exhibit 5 to my petition by listening to the incident recording and recording the words I heard with timestamps. Bracketed descriptions are my descriptions of visible or audible events, not spoken quotations. I offer the transcript as an aid to comparison with the original recording; where they differ, the recording should control.

4. I answered the officers' questions and participated in the eye-movement and time-estimation exercises. I am not qualified to interpret HGN, and I do not claim that my own impression of

completing a test establishes a passing result. My recollection is that I felt tired, understood the questions and tried to follow the instructions.

5. When the walk-and-turn was proposed, I said I thought we could do it. I heard Officer Melano raise concerns about the freeway shoulder and uneven ground, and the officers did not administer that test. That is the exchange identified in my transcript at approximately 01:10:14–01:10:30. My earlier uncertainty about balancing on one leg concerned the one-leg-stand, not the subsequent walk-and-turn.

6. Officer Meza-Gonzales told me the roadside PAS was not required. I declined it. The officers then directed me to turn around, handcuffed me, transported me and took me to jail. I did not consent to being placed under arrest, handcuffed, transported or confined. I distinguish my refusal of the roadside PAS from later requests for post-arrest chemical testing.

7. I reported my concerns about the officers' conduct to CHP and POST. My certification submission included incident information and the transcript so that the asserted conduct could be evaluated. I remain willing to provide truthful information and reasonably requested assistance concerning the alleged unlawful restraint.

8. I am not aware of any request that I refused or failed to comply with for assistance in investigating the alleged unlawful restraint by the officers. This statement concerns that alleged conduct, not whether I consented to every request during the DUI investigation of me.

9. On April 9, 2026, I sent CHP my request for Form I-918 Supplement B certification and its supporting materials. I received the April 20, 2026 denial signed by Captain G. Serrato. True copies of the request and denial are already designated as Petition Exhibits 2 and 1, respectively. I do not infer from the denial's length what CHP did or did not review internally.

10. On October 23, 2026, I received counsel's production communication identifying four video files and documents, including AGO 000022–000025, AGO 000029–000054, AGO 000061 and a privilege log. Exhibit A to this declaration is the production communication and accompanying service declaration. Exhibit B is the produced CHP report, forms and warrant materials, AGO

000029–000053. Exhibit C is the privilege log. These copies are unchanged from the versions I received.

11. The Bates-stamped documents identify their contents and dates. I do not claim that they establish everything that existed in CHP's certification file, that a May memorandum proves no earlier review occurred, or that any withheld document says anything not disclosed in the log.

12. Exhibit D is the clerk's confirmation for my September 8, 2026 lodging submission. It states that the notice of lodging and declaration were accepted and the accompanying proof of service was rejected for formatting. I do not represent that this confirmation itself establishes acceptance of the media, admission of the recording into evidence, or effective service. The recording and service status must be established by the appropriate records and procedures.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on _____, at _____, California.

Signature: _____

BRENDAN NGEHSI NEWANFORBI

# EXHIBIT A

October 23, 2026 Production Communication and Service Declaration

Copy reproduced for identification; admission and authentication remain required.

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

**Production of Documents, Set One - Newanforbi, Brendan Ngehsi v. California Highway Patrol, et al. - 26CV191136**

**Huihong Su** <Huihong.Su@doj.ca.gov> Fri, Oct 23 at 10:45 AM
To: <bnn.cdl@gmail.com>
Cc: <Vanessa.Ing@doj.ca.gov>

Good morning,

Please see attached documents in the above referenced case. Thank you.

Please download the attachments via the "Download Files" link at the bottom of this email. Please note that this link will expire.

Sincerely,

Huihong Su

Legal Secretary

California Department of Justice

Office of the Attorney General

455 Golden Gate Ave, Suite 11000

San Francisco, CA 94102

## The following files have been sent using FileXchange and can be downloaded by using the link below:

| Filename | Size | Checksum (SHA256) |
| --- | --- | --- |

| | | |
|---|---|---|
| 7659@20241101005536-0.mp4 | 2.47 GB | ae5da7e970720d26d076ad36fb3254 3429ef60b3a79fc1c274b647b06fd1d6b4 |
| 7659@20241101013330-1.mp4 | 54.3 MB | 30aac4eae73188ba82b2e7916f7009 7f59f2f493a1e0b3d6f46ebcb93e1352e9 |
| 7659@20241101024702-0.mp4 | 146 MB | 921025565fd7baaff762ab51a83285 48ddbb2290b28cd6c1e358de6cad4720c0 |
| 7659@20241101024704-1.mp4 | 8.04 MB | 359fc627805a4bdcf72cf119455487 42c8b29e446eedafa35346cf07dd3f75fb |
| Dashcam Videos Coversheet.pdf | 113 KB | c8472a9d6c15f76a99e9e67097d1e3 5ffbfd7ab0a7d0d72df1051820337c4dc0 |
| Exhibit 3, Incident Log 241101GG0064.pdf | 974 KB | 201cacaed9a228daa17b579e1a46b7 2b66706304f93c0b6de0dd868809140aa8 |
| Exhibit 4, Beat sheet 10-31-2024.pdf | 1.56 MB | e1814786b9a8210608f574b17249bd fa83f6efd5d6d83c6d05151603a9423ded |
| Exhibit 5, CHP 202, DS 367, Warrant Affidavit.pdf | 12.6 MB | 320533ac9d50323cf49abd59506b0a 8bd0db3e42fc9f895ac8c7d055259aa012 |
| Exhibit 8, CHP 415, Meza-Gonzales 10-31-2024.pdf | 711 KB | 36781c9e379c04e9e602162505f7c4 ed7e80e6219040e44fa6be8f2d0cd1d166 |
| Exhibit 11, CHP 415, Melano 10-31-2024.pdf | 717 KB | f6c013637f82aa9143c7271653111c 1ae0a8253eeda4fcc3c5316f7ee3d0b664 |
| Privilege Log.PDF | 93.6 KB | cabad17f0d00dcd92c9ebcdabb1955 b2442b9c96e53c2e755d2cebbe30991063 |
| Proof of Service.PDF | 98.3 KB | c15d4fa96e4a398ed1562261e2b008 0efe58c04165719a7b8276349bf2e89ef8 |

Please click on the following link to download the attachments:
https://FX.doj.ca.gov/message/orIYCpEqOzjhLGnMTCN4Dd

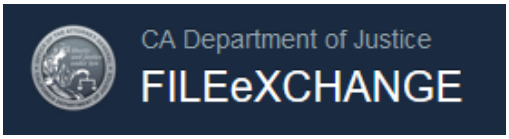
This email or download link can be forwarded to anyone.

The attachments are available until: **Friday, 30 October.**

Message ID: `orIYCpEqOzjhLGnMTCN4Dd`

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# DECLARATION OF SERVICE BY E-MAIL

**Case Name:** *Newanforbi, Brendan Ngehsi v. California Highway Patrol, et al.*
**Case Number:** 26CV191136
**Party Represented:** California Highway Patrol, et al.

**Declaration of Electronic Service**

1. I am at least 18 years of age and not a party to this matter.

2. I am employed in the Office of the Attorney General of the State of California. My business address is 455 Golden Gate Avenue, Suite 11000, San Francisco, CA 94102-7004, County of San Francisco.

3. My electronic service address is Huihong.Su@doj.ca.gov.

4. On October 23, 2026, I electronically served the following document[s]:

   a. **RESPONDENT'S PRODUCTION OF FOUR DASHCAM VIDEO RECORDINGS (WITH COVERSHEET)**
   b. **PRODUCTION DOCUMENTS - AGO 000022-000024**
   c. **PRODUCTION DOCUMENTS - AGO 000025**
   d. **PRODUCTION DOCUMENTS - AGO 000029-000053**
   e. **PRODUCTION DOCUMENTS - AGO 000054**
   f. **PRODUCTION DOCUMENTS - AGO 000061**
   g. **PRIVILEGE LOG IN SUPPORT OF RESPONDENT CALIFORNIA HIGHWAY PATROL'S RESPONSES TO PETITIONER'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE**

5. I electronically served the aforementioned documents by transmitting a true copy via FileXchange download link, addressed as follows::

Brendan Ngehsi Newanforbi
**E-mail Address**:
bnn.cdl@gmail.com

***Petitioner, In Pro Per***

I declare under penalty of perjury under the laws of the State of California and the United States of America that the foregoing is true and correct, and that this declaration was executed on October 23, 2026.

| H. Su | */s/ H. Su* |
|---|---|
| Declarant | Signature |

SA2026303341
45409529.docx

# EXHIBIT B

CHP Report, Forms and Warrant Materials: AGO 000029–000053

Copy reproduced for identification; admission and authentication remain required.

STATE OF CALIFORNIA
DEPARTMENT OF CALIFORNIA HIGHWAY PATROL

# DRIVING UNDER THE INFLUENCE ARREST – INVESTIGATION REPORT

CHP 202 (Rev. 2-24) OPI 066

☒ Misdemeanor ☐ Felony ☐ Domestic Violence (Refer to HPM 100.69)

| COURT | FILE NUMBER | EVIDENCE/PROPERTY |
|---|---|---|
| East County Hall of Justice | 202400898 | ☐ YES ☒ NO |

| AREA | BEAT | CRASH REPORT NUMBER |
|---|---|---|
| 390 | 052 | N/A |

E- _____

LAST NAME, FIRST NAME, AND MIDDLE INITIAL: **Newanforbi, Brendan, Ngehsi**

| DATE/TIME OF ARREST/REPORT | DATE/TIME OF INCIDENT ☐ SAME | LOCATION OF ARREST/INCIDENT | WMVARS/MVARS |
|---|---|---|---|
| 11/01/2024 0112 | 11/01/2024 0055 | I-580 eastbound, west of Isabel Avenue | ☒ YES ☐ NO WMVARS |

| CAD NUMBER ☐ NONE | CITATION NUMBER | OFFENSE(S) CHARGED OR INVESTIGATED | JUS 8715 REQUIRED |
|---|---|---|---|
| 241101GG0064 | RJ68845 | 23152(a) VC, 23152(b) VC | ☒ YES ☐ NO NUMBER: |

## SUBJECT NO 1 OF 1

| NAME (last, first, middle) | RESIDENCE ADDRESS |
|---|---|
| Newanforbi, Brendan, Ngehsi | 1455 Cat Tail Drive Stockton CA, 95204 |

| AKA | HOME PHONE | MAILING ADDRESS |
|---|---|---|
| Not asked | Not asked | ☒ SAME |

| RACE | ETHNICITY | SEX | BIRTHDATE | DISPATCH NOTIFIED |
|---|---|---|---|---|
| Black or African American | Not Hispanic or Latino | Male | 09/16/1996 | ☒ YES ☐ NO TIME: 0326 |

| DRIVER LICENSE NUMBER | STATE | DDL STATUS | HAIR | EYES | HEIGHT | WEIGHT | PLACE OF BIRTH (city, state, country) | ID: |
|---|---|---|---|---|---|---|---|---|
| F7953179 | CA | Valid | BLK | BRN | 508 | 225 | Camaroon | A13903 |

| EMPLOYER | BUSINESS PHONE | BUSINESS ADDRESS | MISC. (SSN, INS #, ETC.) |
|---|---|---|---|
| Self employed | Not asked | Not asked | Not asked |

| BOOKING, CII, FBI, ETC., NUMBER(S) | WHERE BOOKED/CONFINED | DATE/TIME | FINGERPRINTED |
|---|---|---|---|
| CAR913358 | Santa Rita Jail | 11/01/2024 0325 | ☒ YES ☐ NO |

NOTIFICATION (*Who, How, When*), EXPLAIN IN NARRATIVE — NOTIFIED BY

☐ JUVENILE ☐ FOREIGN NATIONAL ☐ IMMUNITY CLAIM

## VEHICLE

| LICENSE | STATE | REG. YEAR | VIN/EN NUMBER | VEHICLE WAS | STORAGE AUTHORITY |
|---|---|---|---|---|---|
| 9EAX768 | CA | 2025 | 7SAYGDEE3PF638736 | ☒ STORED ☐ PARKED ☐ RELEASED ☐ RECOVERED ☐ IMPOUNDED | 22651(h)(1) VC |

| VEH YEAR | MAKE | MODEL | COLOR | BODY TYPE | LOCATION OF VEHICLE/RELEASED TO/ADDRESS/TELEPHONE NUMBER |
|---|---|---|---|---|---|
| 2023 | Tesla | Model Y | Gray | SUV | United Towing - (925) 888-8880 |

| NAME OF REGISTERED OWNER ☐ SAME AS SUBJECT | ADDRESS ☐ SAME AS SUBJECT |
|---|---|
| PV Holding Corp. | 5721 W. 96th Street Los Angeles CA, 90045 |

| NAME OF LEGAL OWNER ☐ SAME AS R/O | ADDRESS | LOCATION OF KEYS |
|---|---|---|
| The bank of New York Mellow Trust Company | 26933 Northwestern Hwy Southfield MI, 48033 | With tow |

## WITNESS/PASSENGER/VICTIM

| BIRTHDATE | SEX | NAME | ADDRESS/AGENCY | PHONE |
|---|---|---|---|---|
| | M | ☒ WITNESS ☐ PASSENGER ☐ VICTIM Officer Melano ID 023054 | 4999 Gleason Drive Dublin CA, 94568 | RES: N/A BUS: (925) 828-0466 |
| | | ☐ WITNESS ☐ PASSENGER ☐ VICTIM | | RES: BUS: |
| | | ☐ WITNESS ☐ PASSENGER ☐ VICTIM | | RES: BUS: |
| | | ☐ WITNESS ☐ PASSENGER ☐ VICTIM | | RES: BUS: |

## ADMONITION OF RIGHTS

1. YOU HAVE THE RIGHT TO REMAIN SILENT.
2. ANYTHING YOU SAY CAN AND WILL BE USED AGAINST YOU IN A COURT OF LAW.
3. YOU HAVE THE RIGHT TO TALK WITH AN ATTORNEY AND TO HAVE AN ATTORNEY PRESENT BEFORE AND DURING QUESTIONING.
4. IF YOU CANNOT AFFORD AN ATTORNEY, ONE WILL BE APPOINTED FREE OF CHARGE TO REPRESENT YOU BEFORE AND DURING QUESTIONING, IF YOU DESIRE.

THE ABOVE STATEMENT WAS READ TO THE ARRESTEE BY:

☒ NOT ADVISED ☐ ARRESTING OFFICER ☐ OR: ID: TIME:

| DO YOU UNDERSTAND EACH OF THESE RIGHTS I HAVE EXPLAINED TO YOU? | HAVING THESE RIGHTS IN MIND, DO YOU WISH TO TALK TO US NOW? | WAIVER STATEMENT |
|---|---|---|
| ☐ YES ☐ NO | ☐ YES ☐ NO | |

**MISDEMEANOR INCARCERATION** (To be completed upon physical arrest for any misdemeanor, pursuant to Section 853.6 of the Penal Code.)
As determined by the arresting officer, the person arrested:

1. ☐ was so intoxicated as to be a danger to themself or others.
2. ☐ required medical examination or medical care or was otherwise unable to care for their own safety.
3. ☒ was arrested under one or more of the circumstances listed in Sections 40302 and 40303 of the California Vehicle Code (Note 5 and 8 if also applicable).
4. ☐ had one or more outstanding arrest warrants issued.
5. ☐ could not provide satisfactory evidence of personal identification.
6. ☒ if released immediately, would jeopardize the prosecution of the offense or offenses for which arrested or the prosecution of any other offenses.
7. ☒ would be reasonably likely to continue the offense or offenses, or the safety of persons or property would be imminently endangered if immediately released.
8. ☐ demanded to be taken before a magistrate or refused to sign the citation.
9. ☐ would not appear at the time and place specified in the notice.
10. ☐ Other:

| ARRESTING/INVESTIGATING OFFICER (*Print name/rank*) | ID NUMBER | REVIEWED BY (*Print name/rank*) | ID NUMBER | DATE |
|---|---|---|---|---|
| Meza / Officer | 023295 | SGT. DEAL | 17747 | 11/5/24 |

**Newanforbi, Brendan, Ngehsi** | **RJ68845**

* Asked prior to FSTs

## INVESTIGATION INTERVIEW

DO YOU KNOW OF ANYTHING MECHANICALLY WRONG WITH YOUR VEHICLE ? DESCRIBE. ☐ YES ☒ NO

ARE YOU SICK OR INJURED? DESCRIBE. ☒ YES ☐ NO: Pre-Diabetic

ARE YOU DIABETIC OR EPILEPTIC? ☒ YES ☐ NO

DO YOU TAKE INSULIN? *(Pills/Injection)* ☐ YES ☒ NO

DO YOU HAVE ANY PHYSICAL IMPAIRMENTS? DESCRIBE. *(Feet, Legs, Ankles, or Hips)* ☐ YES ☒ NO

WHEN DID YOU LAST SLEEP? Right now

HOW LONG? 7 Minutes

WHEN DID YOU LAST EAT? 11:30 PM

DESCRIBE: Hot dog

WERE YOU DRIVING THE VEHICLE? ☒ YES ☐ NO ☐ N/A

IF NO, WHO?

WHERE DID YOU START DRIVING? Oakland

WHERE WERE YOU GOING? Stockton

WHERE WERE YOU STOPPED? Livermore

WHAT HAVE YOU BEEN DRINKING? Nothing

HOW MUCH? Not asked

TIME STARTED? Not asked

TIME STOPPED? Not asked

LOCATION WHERE YOU WERE DRINKING? Not asked

NAME/ADDRESS

DO YOU FEEL THE EFFECTS OF THE DRINKS? DESCRIBE. Not asked ☐ YES ☐ NO

DID YOU BUMP YOUR HEAD? ☐ YES ☒ NO ☐ N/A

HAVE YOU BEEN DRINKING SINCE THE ACCIDENT? ☐ YES ☐ NO ☒ N/A

IF YES, WHAT?

HOW MUCH?

ARE YOU UNDER CARE OF A DOCTOR OR DENTIST? ☐ YES ☒ NO

IF YES, NAME/ADDRESS

RECENT SURGERY PERFORMED? ☐ YES ☒ NO **(Explain in Narrative)*

HAVE YOU TAKEN ANY MEDICINE OR DRUGS? ☐ YES ☒ NO

IF YES, WHAT?

HOW MUCH?

TIME OF LAST DOSAGE?

DO YOU FEEL THE EFFECTS OF THE MEDICINE/DRUGS? DESCRIBE. ☐ YES ☒ NO

## OBJECTIVE SIGNS/APPEARANCE/FIELD SOBRIETY TEST LOCATION

| BREATH ODOR OF ALCOHOLIC BEVERAGE PRESENT: | GLASSES/LENSES | EYES (appearance) | DEMEANOR | SPEECH |
|---|---|---|---|---|
| Strong ☒ YES ☐ NO | ☐ YES ☒ NO | Red and watery | Compliant | Slurred |

CLOTHING WORN: CONDITION AND DESCRIPTION

Worn condition: Black shirt, green pants, and black slides

DESCRIBE TEST LOCATION, SURFACE, WEATHER, AND LIGHTING

Dirt shoulder: Clear, cool, and dry with patrol vehicle lights and flashlight

## PRELIMINARY ALCOHOL SCREEN INFORMATION

**P.A.S. Admonition: I am requesting that you take a preliminary alcohol screening test to further assist me in determining whether you are under the influence of alcohol. You may refuse to take this test; however, this is not an implied consent test and, if arrested, you will be required to give a sample of your blood, breath, or urine for the purpose of determining the actual alcoholic and drug content of your blood.**

THE SUBJECT WAS ADVISED OF THE ABOVE STATEMENT BY:

☐ NOT ADVISED ☒ ARRESTING OFFICER ☐ OR ID: TIME: 0111

| PAS SERIAL NUMBER | TEMPERATURE | ZEROED | RESULTS NO. 1 | TIME 1 | RESULTS NO. 2 | TIME 2 | RESULTS NO. 3 *(if needed)* | TIME 3 |
|---|---|---|---|---|---|---|---|---|
| | | ☐ YES ☐ NO | ☒ Refused | | | | | |

| LOCATION OF TEST | BREATH SAMPLE | OFFICER ADMINISTERING PAS TEST | ID NUMBER | AREA |
|---|---|---|---|---|
| ☐ At scene | ☐ Automatic ☐ Manual | ☐ ARRESTING OFFICER ☐ OR | | |

## CHEMICAL TEST INFORMATION

☒ Implied Consent Admonishment, Section 23612 CVC

☒ Refused Test(s) (Complete DS 367)

DRUG ADMONISHMENT ☒ N/A ☐ Yes ☐ Refused (Complete DS 367)

ATTACHMENTS ☐ CHP 202 DRE ☐ OTHER

| TYPE OF TEST | TIME | ID OF SAMPLE(S) | RESULTS, IF AVAILABLE | DISPOSITION OF SAMPLE(S) |
|---|---|---|---|---|
| 1 ☐ Breath | | | | |
| 2 ☒ Blood | 0238 | RJ68845 | Pending | CHP Dublin Area Blood Evidence Locker |
| 3 ☐ Urine | | | | |

| TEST GIVEN | LOCATION WHERE TEST WAS CONDUCTED | NAME AND TITLE OF PERSON GIVING TEST OR TAKING SAMPLE |
|---|---|---|
| 1 | | ☐ ARRESTING OFFICER ☐ OR |
| 2 | CHP Dublin Area Office | ☐ ARRESTING OFFICER ☒ OR Phlebotomist Aziza Ghaleb |
| 3 | | ☐ ARRESTING OFFICER ☐ OR |

## CHEMICAL TEST ADVISEMENT

A. The breath testing equipment does NOT retain any breath sample for later analysis by you or anyone else.

B. If you want a sample retained, you may provide a blood or urine sample that will be retained at no cost to you. If you do so, the blood or urine sample may be tested for alcoholic or drug content by either party in a criminal prosecution.

C. Do you wish to provide an additional sample? ☐ YES ☐ NO ☒ N/A

## WATSON ADVISEMENT

You are hereby advised that being under the influence of alcohol or drugs, or both, impairs your ability to safely operate a motor vehicle. Therefore, it is extremely dangerous to human life to drive while under the influence of alcohol or drugs, or both. If you continue to drive while under the influence of alcohol or drugs, or both, and, as a result of that driving, someone is killed, you can be charged with murder.

DO YOU UNDERSTAND ☒ YES ☐ NO _____ READ VERBATIM: ☒ YES ☐ NO ☐ DID NOT ADVISE (Explain in narrative)

☒ ARRESTING OFFICER ☐ OR _____ ID: _____ ☐ N/A

ARREST – INVESTIGATION REPORT NARRATIVE (CONTINUED)

**FIELD SOBRIETY TESTS:**

*All FSTs were explained and demonstrated in English by myself. Newanforbi stated he understood each test prior to performing each test. Newanforbi was asked and answered a series of FST questions prior to performing the FSTs. Notes were taken on 3x5 notepad, transferred to the report, and thrown out upon completion of the report. All times throughout this report were taken by my Iphone, unless otherwise stated.

**Horizontal Gaze Nystagmus:** Newanforbi displayed the following in both his eyes: Equal pupils, equal tracking, lack of smooth pursuit, distinct and sustained nystagmus at maximum deviation, and the onset of nystagmus prior to 45 degrees. Newanforbi also displayed lack of convergence.

**Modified Romberg Balance:** Newanforbi estimated the passage of 30 seconds to be an actual 43 seconds. Newanforbi displayed eyelid flutters.

**One Leg Stand:** Newanforbi chose not to perform this test and related it was difficult.

**Walk and Turn:** Newanforbi chose not to perform this test and related it was difficult.

**Preliminary Alcohol Screening Device (PAS):** I advised Newanforbi of the PAS admonishment and he refused to take the test.

**FIRST OBSERVATIONS:**

On 11/01/2024 at approximately 0055 hours, I was on duty, in full tan California Highway Patrol (CHP) uniform, driving a fully marked CHP patrol vehicle (1633363). My partner, Officer Melano ID 023054, was seated in the right front passenger of my patrol vehicle, also in full tan CHP uniform. We were traveling eastbound on I-580, just west of Isabel Avenue, when we came upon a Gray Tesla Model Y (S/V) on the right shoulder of I-580, just west of Isabel Avenue. I proceeded to park my patrol vehicle right behind the Tesla on the right shoulder to make a welfare check on the Tesla. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist.

ARREST – INVESTIGATION REPORT NARRATIVE (CONTINUED)

**OBSERVATIONS UPON CONTACT:**

I knocked on the right front passenger side window of the Tesla and the subject woke up. The subject seemed very confused and disoriented. I contacted the subject through the open right passenger side door and I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle. I asked the subject if he was okay, and he related yes. The subject related he was in a parking lot, and I proceeded to informed him he was not in a parking lot, and he was on the side of the freeway. I asked the subject how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the subject if he had consumed any alcoholic beverages, and he related no. I directed the male to exit the Tesla and walk to the right front of my patrol vehicle where I conducted a DUI evaluation. I asked the male if he had consumed any alcoholic beverages since stopping at that location and he related no. I asked the male if he had a driver license, and he gave me his California Driver License. I identified the male as Brendan Ngehsi Newanforbi D.O.B 09/16/1996 by his California Driver License ID F7953179. I asked Newanforbi a series of field sobriety test questions and while speaking with Newanforbi, I smelled the strong distinct odor of an alcoholic beverage coming from Newanforbi's breath and person. I explained and demonstrated a series of Field Sobriety Tests to Newanforbi, which he did not perform as explained and demonstrated.

**ARREST:**

Based on the following, I formed the opinion that Newanforbi drove to this location while under the influence of alcohol, a violation of California Vehicle Code 23152(a) per 40300.5 VC:

1. Newanforbi displayed objective signs and symptoms of intoxication.
2. Newanforbi stated that he had driven the vehicle to this location.
3. The driver's seat was adjusted to that of a person of Newanforbi's stature.
4. Newanforbi's answers to the Pre-FST questions.
5. Newanforbi's poor performance on the FST's.
6. Newanforbi related he did not have any alcoholic beverages since he stopped on the shoulder.

ARREST – INVESTIGATION REPORT NARRATIVE (CONTINUED)

**ARREST (Continued):**

At 0112 hours, I placed Newanforbi under arrest for a violation of California Vehicle Code section 23152 (a), driving while under the influence of alcohol, per 40300.5 VC.

I placed Newanforbi in handcuffs, they were then adjusted to proper fit and double locked. Newanforbi was then placed in the right rear passenger seat of my patrol vehicle. During this investigation a Department of Motor Vehicles (DMV) driving history for Newanforbi was requested through the GGCC. The GGCC advised his license status was valid and was on parole for 289(a)(1) PC. I advised Mr. Newanforbi of Implied Consent by reading the back of the DMV DS 367 page 1 verbatim (excluding paragraph 3 and 6). I gave Newanforbi the choice of submitting to a chemical breath test, blood test, or to refuse the tests. I advised Newanforbi there were additional administrative consequences from the DMV for refusing the chemical tests. Newanforbi chose to refuse any chemical testing. Newanforbi was then transported to the CHP Dublin Area Office, where I wrote an affidavit for Newanforbi's blood. Judge A. Sekany approved the affidavit at approximately 0234 hours (WAR913372). At approximately 0238 hours, I received two vials of blood from Newanforbi's right arm by phlebotomist Aziza Ghaleb. The blood sample was sealed and secured in the CHP Dublin Area Blood Evidence locker for analysis by the Department of Justice. Newanforbi was then transported to Santa Rita jail, where he was booked at approximately 0325 hours for 23152(a) VC.

**RECOMMENDATIONS:**

I recommend that a copy of this report be forwarded to the Alameda County District Attorney's office for the review of the following charges against Brendan Ngehsi Newanforbi:

- 23152(a) VC - DUI Alcohol
- 23152(b) VC - .08% BAC or above (Pending Results)

Upon successful prosecution of the above charges, I recommend the following enhancements be charged against Newanforbi:

- 23578 VC - Chemical Test Refusal

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Primary Agency: S. Meza-Gonzales
CHP - Dublin
4999 Gleason Drive
Dublin, CA 94568

Ascertain Forensics #: 2024-004531
Sample Collection Date: 11-01-2024
Test Request: FP851B

Agency #: RJ68845

**Subject: Brendan Ngehsi Newanforbi**

## LABORATORY REPORT

The following evidence was submitted to the Laboratory by a representative of the CHP - Dublin on 11/12/2024 via Courier:

Submission 01: One tape sealed and initialed envelope marked in part "Newanforbi, Brendan, Ngehsi" containing two gray top tubes of blood.

**Confirmation/Screen Results**

| Analyte Name | Concentration | Units | Method | Sample Type |
|---|---|---|---|---|
| Ethanol | 0.073 ± 0.004 | grams % | Headspace GC-FID | Blood |

The measurement of uncertainty value is ± 4.9% with a coverage probability of approximately 99.73%

**Comments:** Laboratory activity performed between 11/14/2024 and 11/15/2024. Analysis of alcohols performed at Ascertain Forensics located at 3700 Westwind Blvd., Santa Rosa, CA.

*Ascertain Forensics is accredited by The American Board of Forensic Toxicology (ABFT) and is recognized by the State of California as a Title 17 Forensic Alcohol Laboratory. Reported results apply to the sample as it was received.*

Analysis was performed by a California Department of Public Health approved Forensic Alcohol Analyst. The equipment used for analysis was in proper working order and the reporting of the results was done using a method approved under the state of California Title 17 Code of Regulations.

This report shall not be reproduced except in *full* without written approval of the Laboratory.

Case Reviewer:

Mireya Olivares
Forensic Analyst

Technical Reviewer:

Gregory A Priebe, M.S., D-ABFT-FT
Senior Forensic Toxicologist

Date report released: November 25, 2024



AGO 000034

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Primary Agency: S. Meza-Gonzales
CHP - Dublin
4999 Gleason Drive
Dublin, CA 94568

Agency #: RJ68845

Ascertain Forensics #: 2024-004531
Sample Collection Date: 11-01-2024
Test Request: FP007B - Drugs of Abuse Pnl
FP009B - General Drug Panel
F3018B - THC

**Subject: Brendan Ngehsi Newanforbi**

## LABORATORY REPORT

The following evidence was submitted to the Laboratory by a representative of the CHP - Dublin on 11/12/2024 via Courier:

Submission 01: One tape sealed and initialed envelope marked in part "Newanforbi, Brendan, Ngehsi" containing two gray top tubes of blood.

**Screen Results**

| Analyte Name | Result | Cutoff | Method | Sample Type |
|---|---|---|---|---|
| Amphetamine \ MDA | Not Detected | 10 ng/mL | LC/QTOF-MS | Blood |
| Barbiturates | Not Detected | 50 ng/mL | LC/QTOF-MS | Blood |
| Benzodiazepines | Not Detected | 5.0 ng/mL | LC/QTOF-MS | Blood |
| Buprenorphine | Not Detected | 2.0 ng/mL | LC/QTOF-MS | Blood |
| Carisoprodol | Not Detected | 50 ng/mL | LC/QTOF-MS | Blood |
| Cocaine Metabolite | Not Detected | 10 ng/mL | LC/QTOF-MS | Blood |
| Fentanyl | Not Detected | 0.5 ng/mL | LC/QTOF-MS | Blood |
| Marijuana Metabolite | Positive | 10 ng/mL | LC/QTOF-MS | Blood |
| Methadone | Not Detected | 20 ng/mL | LC/QTOF-MS | Blood |
| Methamphetamine \ MDMA | Not Detected | 10 ng/mL | LC/QTOF-MS | Blood |
| Opiates | Not Detected | 5.0 ng/mL | LC/QTOF-MS | Blood |
| Oxycodone \ Oxymorphone | Not Detected | 5.0 ng/mL | LC/QTOF-MS | Blood |
| PCP | Not Detected | 2.5 ng/mL | LC/QTOF-MS | Blood |
| Tramadol | Not Detected | 5.0 ng/mL | LC/QTOF-MS | Blood |
| Zolpidem | Not Detected | 5.0 ng/mL | LC/QTOF-MS | Blood |

**Confirmation/Screen Results**

| Analyte Name | Concentration | Units | Method | Sample Type |
|---|---|---|---|---|
| delta 9-Tetrahydrocannabinol (THC) | Not Detected | | LC-MS-MS | Blood |
| 11-hydroxy-THC (11-OH-THC) | Not Detected | | LC-MS-MS | Blood |
| 11-nor-THC-9-carboxylic acid (THC-COOH) | 3.0 | ng/mL | LC-MS-MS | Blood |

A list of specific analytes to include reporting thresholds and measurement uncertainty are available upon request . Contact the laboratory at Forensics@redwoodtoxicology.com

**Comments:** Laboratory activity performed between 11/15/2024 and 11/25/2024.

Date report released: December 5, 2024



AGO 000035

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

*Ascertain Forensics is accredited by The American Board of Forensic Toxicology (ABFT) and is recognized by the State of California as a Title 17 Forensic Alcohol Laboratory. Reported results apply to the sample as it was received.*

This report shall not be reproduced except in *full* without written approval of the Laboratory.

Case Reviewer: Lacey Navé

Lacey S. Nave
Forensic Toxicologist

Technical Reviewer: Tim W. Grambow

Tim W Grambow, F-ABFT
Senior Forensic Toxicologist

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Primary Agency: S. Meza-Gonzales
CHP - Dublin
4999 Gleason Drive
Dublin, CA 94568

Agency #: RJ68845

Ascertain Forensics #: 2024-004531
Sample Collection Date: 11-01-2024
Test Request: FP007B - Drugs of Abuse Pnl

**Subject: Brendan Ngehsi Newanforbi**

## LABORATORY REPORT

The following evidence was submitted to the Laboratory by a representative of the CHP - Dublin on 11/12/2024 via Courier:

Submission 01: One tape sealed and initialed envelope marked in part "Newanforbi, Brendan, Ngehsi" containing two gray top tubes of blood.

**Screen Results**

| Analyte Name | Result | Cutoff | Method | Sample Type |
|---|---|---|---|---|
| Cocaine Metabolite | Not Detected | 10 ng/mL | LC/QTOF-MS | Blood |
| Fentanyl | Not Detected | 0.5 ng/mL | LC/QTOF-MS | Blood |
| Methamphetamine \ MDMA | Not Detected | 10 ng/mL | LC/QTOF-MS | Blood |
| Opiates | Not Detected | 5.0 ng/mL | LC/QTOF-MS | Blood |
| PCP | Not Detected | 2.5 ng/mL | LC/QTOF-MS | Blood |

A list of specific analytes to include reporting thresholds and measurement uncertainty are available upon request . Contact the laboratory at Forensics@redwoodtoxicology.com

**Comments:** None

*Ascertain Forensics is accredited by The American Board of Forensic Toxicology (ABFT) and is recognized by the State of California as a Title 17 Forensic Alcohol Laboratory. Reported results apply to the sample as it was received.*

This report shall not be reproduced except in *full* without written approval of the Laboratory.

Case Reviewer: Lacey Nave
Lacey S. Nave
Forensic Toxicologist

Technical Reviewer: Tim W. Grambow
Tim W Grambow, F-ABFT
Senior Forensic Toxicologist

Date report released: December 5, 2024



AGO 000037

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Primary Agency: S. Meza-Gonzales
CHP - Dublin
4999 Gleason Drive
Dublin, CA 94568

Ascertain Forensics #: 2024-004531
Sample Collection Date: 11-01-2024
Test Request: FP009B - General Drug Panel

Agency #: RJ68845

**Subject: Brendan Ngehsi Newanforbi**

## LABORATORY REPORT

The following evidence was submitted to the Laboratory by a representative of the CHP - Dublin on 11/12/2024 via Courier:

Submission 01: One tape sealed and initialed envelope marked in part "Newanforbi, Brendan, Ngehsi" containing two gray top tubes of blood.

**Screen Results**

| Analyte Name | Result | Cutoff | Method | Sample Type |
|---|---|---|---|---|
| Barbiturates | Not Detected | 50 ng/mL | LC/QTOF-MS | Blood |
| Benzodiazepines | Not Detected | 5.0 ng/mL | LC/QTOF-MS | Blood |
| Buprenorphine | Not Detected | 2.0 ng/mL | LC/QTOF-MS | Blood |
| Carisoprodol | Not Detected | 50 ng/mL | LC/QTOF-MS | Blood |
| Marijuana Metabolite | Positive | 10 ng/mL | LC/QTOF-MS | Blood |
| Methadone | Not Detected | 20 ng/mL | LC/QTOF-MS | Blood |
| Oxycodone \ Oxymorphone | Not Detected | 5.0 ng/mL | LC/QTOF-MS | Blood |
| Tramadol | Not Detected | 5.0 ng/mL | LC/QTOF-MS | Blood |
| Zolpidem | Not Detected | 5.0 ng/mL | LC/QTOF-MS | Blood |

A list of specific analytes to include reporting thresholds and measurement uncertainty are available upon request . Contact the laboratory at Forensics@redwoodtoxicology.com

**Comments:** None

*Ascertain Forensics is accredited by The American Board of Forensic Toxicology (ABFT) and is recognized by the State of California as a Title 17 Forensic Alcohol Laboratory. Reported results apply to the sample as it was received.*

This report shall not be reproduced except in *full* without written approval of the Laboratory.

Case Reviewer: Lacey Nave
Lacey S. Nave
Forensic Toxicologist

Technical Reviewer: Tim W. Grambow
Tim W Grambow, F-ABFT
Senior Forensic Toxicologist

Date report released: December 5, 2024



AGO 000038

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Primary Agency: S. Meza-Gonzales
CHP - Dublin
4999 Gleason Drive
Dublin, CA 94568

Agency #: RJ68845

Ascertain Forensics #: 2024-004531
Sample Collection Date: 11-01-2024
Test Request: F3018B - THC

**Subject: Brendan Ngehsi Newanforbi**

## LABORATORY REPORT

The following evidence was submitted to the Laboratory by a representative of the CHP - Dublin on 11/12/2024 via Courier:

Submission 01: One tape sealed and initialed envelope marked in part "Newanforbi, Brendan, Ngehsi" containing two gray top tubes of blood.

**Confirmation/Screen Results**

| Analyte Name | Concentration | Units | Method | Sample Type |
|---|---|---|---|---|
| delta 9-Tetrahydrocannabinol (THC) | Not Detected | | LC-MS-MS | Blood |
| 11-hydroxy-THC (11-OH-THC) | Not Detected | | LC-MS-MS | Blood |
| 11-nor-THC-9-carboxylic acid (THC-COOH) | 3.0 | ng/mL | LC-MS-MS | Blood |

A list of specific analytes to include reporting thresholds and measurement uncertainty are available upon request . Contact the laboratory at Forensics@redwoodtoxicology.com

**Comments:** None

*Ascertain Forensics is accredited by The American Board of Forensic Toxicology (ABFT) and is recognized by the State of California as a Title 17 Forensic Alcohol Laboratory. Reported results apply to the sample as it was received.*

This report shall not be reproduced except in *full* without written approval of the Laboratory.

Case Reviewer: Lacey Nave

Lacey S. Nave
Forensic Toxicologist

Technical Reviewer: Jim W. Grambow

Tim W Grambow, F-ABFT
Senior Forensic Toxicologist

Date report released: December 5, 2024



AGO 000039

# AGE 21 AND OLDER OFFICER'S STATEMENT

*California Vehicle Code* (CVC) §§13353, 13353.1, 13353.2 & 13389



A Public Service Agency

| LAW ENFORCEMENT AGENCY CASE NUMBER | DETENTION/ARREST DATE | FOR DMV USE ONLY |
|---|---|---|
| RJ68845 | 11/1/24 | |

| DRIVER NAME (LAST, FIRST, M.I.) | DRIVER LICENSE NUMBER | COMMERCIAL? | STATE |
|---|---|---|---|
| NEWAN FORBI, BRENDAN, N | F7953179 | ☐ Yes ☒ No | CA |

| MAILING ADDRESS | STATE | ZIP CODE |
|---|---|---|
| ~~NEWAN FORBI~~ 1455 CAT TAIL DR | STOCKTON CA | 95206 |

| DATE OF BIRTH | SEX | HAIR | EYES | HEIGHT | WEIGHT |
|---|---|---|---|---|---|
| 9/16/96 | M | BLK | BRN | 508 | 225 |

**Arrest Type** For statistical purposes only. Check all that apply.
☒ Alcohol Use ☐ Cannabis Use ☐ Other Drug Use

**LICENSE:** ☐ Suspended/Revoked ☒ Surrendered (*Attached*) ☐ Not in Possession ☐ Unlicensed

**VIOLATION:** ☐ 0.08% or more BAC Chemical Test Results ☐ 0.01% or more BAC (*DUI Probation*) ☐ 0.04% or more BAC (*Commercial Vehicle*)
☒ Chemical Test Refusal (*Complete Reverse*) ☐ PAS or other Chemical Test Refusal (*DUI Probation*) (*Complete Reverse*)

**VEHICLE:** License Number or VIN: 9EAX768
☐ **Commercial Vehicle:** Vehicle requires a commercial driver license (CVC §15210). ☐ **Hazardous Materials:** Transporting materials requiring placards/markings (CVC §27903).

**NARRATIVE:** Describe in detail the facts, observations, and circumstances that led to the stop or contact with the driver in ***Narrative*** section on **Page 2** of this form.

**Contact:** On date: 11/01/24 at 12:55 ☒ AM ☐ PM in City/County LIVERMORE / ALAMEDA CA, the above driver was contacted.

**DRIVING:** ☐ Driving observed by this officer or ☐ Driving observed by another observer (complete ***Observation/Arrest*** section on Page 2)
**Admission of Driving:** ☒ Driver admitted to driving the vehicle **Collision:** ☐ Driver involved in a collision

**TIME:** (If driving not observed by an officer.)
What time did you stop driving or how long after driving/collision did you wait for law enforcement to arrive? **Driver Response:** 7 ☐ AM ☐ PM ☐ HR ☒ MIN

**ARREST OR DETENTION STATEMENT:** I had reasonable cause to believe the driver was driving a motor vehicle with alcohol and/or drugs present in the blood or while under the influence. The driver was lawfully arrested, or lawfully detained while on DUI probation, by this officer, or by the person shown in the ***Observation/Arrest*** section on Page 2, on date 11/01/24 at 1:12 ☒ AM ☐ PM for violation of CVC §§23152, 23153, or 23154.

**OBJECTIVE SYMPTOMS OF INTOXICATION:** ☒ Bloodshot/watery eyes ☒ Odor of alcoholic beverage ☐ Unsteady gait ☒ Slurred speech ☐ PAS results (*complete below*)
☒ Other: POOR FSTS Observed by: ☒ This officer ☐ Another observer: _____

## PRELIMINARY ALCOHOL SCREENING TEST (PAS)

DUI Probation: Required. Non-DUI Probation: Optional. Always complete section if PAS results available.

Driver submitted to and completed a PAS test with the results of:

**Test 1** _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM **Test 2** _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM

**OFFICER CERTIFICATION:** I certify under penalty of perjury under the laws of the State of California that: **(1)** I obtained the above PAS test results in the regular course of my duties, **(2)** I used PAS Model (*Name/Number*) REFUSED, Serial# _____, Manufactured by _____, **(3)** I administered this PAS test properly in accordance with the manufacturer's guidelines and instructions, **(4)** I have received training on the proper operation of this device and administration of the PAS test and am competent and qualified to operate the device, and **(5)** the device was functioning properly at the time of the test.

Date / / Signature X Badge/ID Number Agcy./Div

## CHEMICAL TEST

Attach copy of the results, if available.

**Breath Test Results:**

**Test 1** _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM **Test 2** _____ % BAC on ___/___/___ at _____ ☐ AM ☐ PM **Test 3** _____ % BAC on ___/___/___ at _____ ☐ AM ☐ PM (*WHEN APPLICABLE*)

**BREATH TEST MACHINE OPERATOR CERTIFICATION:** I certify under penalty of perjury under the laws of the State of California, that the above breath test sample results were obtained in the regular course of my duties. I further certify that I am qualified to operate this equipment and that the test was administered pursuant to the requirements of Title 17 of the *California Code of Regulations*.

Date / / Signature X Badge/ID Number Agcy./Div

**BLOOD TEST RESULTS:** Blood test on date: 11/01/24 at 7:38 ☒ AM ☐ PM

**URINE TEST RESULTS:** First void on date: / / at ☐ AM ☐ PM Test on date: / / at ☐ AM ☐ PM

I certify under penalty of perjury, under the laws of the State of California, that the information contained on all pages of this Officer's Statement is true and correct.

**EXECUTED ON:** Date 11/1/24 in City LIVERMORE County ALAMEDA

| OFFICER'S PRINTED NAME | BADGE/ID NUMBER | TELEPHONE NUMBER |
|---|---|---|
| MEZA | 23295 | (925) 828-0466 |
| **AGENCY** | **AREA** | **COURT CODE** (*IF UNKNOWN, COURT NAME*) |
| CHP | 39 | 01435 |

I ☒ **did** ☐ **did not** personally serve a copy of the Order of Suspension/Revocation to the driver.

Date 11/1/24 Signature of Arresting Officer X

**ORDER SERVED BY ANOTHER OFFICER:** If order was served on driver by another officer have that officer complete this section.
**I personally served a copy of the order to the driver on the date shown below:**

Date Serving Officer's *Printed* Name Badge/ID Number Signature Of Serving Officer
/ / X

DMV — A Public Service Agency

# AGE 21 AND OLDER OFFICER'S STATEMENT

CVC §§13353, 13353.1, 13353.2 & 13389

| LAW ENFORCEMENT AGENCY CASE NUMBER | DETENTION/ARREST DATE | FOR DMV USE ONLY |
|---|---|---|
| KS68845 | 11/1/24 | |

| DRIVER NAME (LAST, FIRST, M.I.) | DRIVER LICENSE NUMBER | COMMERCIAL? | STATE |
|---|---|---|---|
| NEWANFORBI, BRENDAN, N | F7953179 | ☐ Yes ☒ No | CA |

| MAILING ADDRESS | STATE | ZIP CODE |
|---|---|---|
| NEWANFORBI 1455 CAT TAIL DR STOCKTON | CA | 95204 |

| DATE OF BIRTH | SEX | HAIR | EYES | HEIGHT | WEIGHT |
|---|---|---|---|---|---|
| 9/16/96 | M | BLK | BRN | 508 | 225 |

**Arrest Type**
For statistical purposes only. Check all that apply.
- ☒ Alcohol Use
- ☐ Cannabis Use
- ☐ Other Drug Use

**LICENSE:** ☐ Suspended/Revoked ☒ Surrendered (*Attached*) ☐ Not in Possession ☐ Unlicensed

**VIOLATION:** ☐ 0.08% or more BAC Chemical Test Results ☐ 0.01% or more BAC (*DUI Probation*) ☐ 0.04% or more BAC (*Commercial Vehicle*)
☒ Chemical Test Refusal (*Complete Reverse*) ☐ PAS or other Chemical Test Refusal (*DUI Probation*) (*Complete Reverse*)

**OBSERVATION/ARREST:** If driving or collision was observed by someone other than the arresting officer, **or** if arrest was completed by another officer or person, input that person's information.

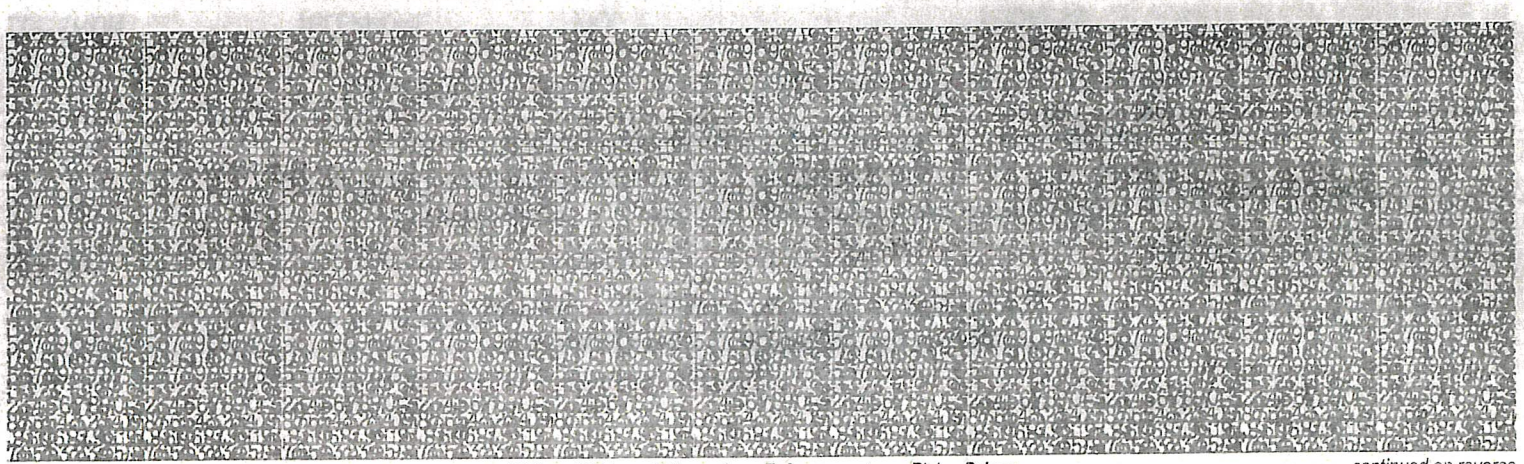
| ☐ Driving or Collision observed by: ☐ Arrest made by: | Observation or Arrest made by ☐ Officer ☐ Citizen | ☐ Driving or Collision observed by: ☐ Arrest made by: | Observation or Arrest made by ☐ Officer ☐ Citizen |
|---|---|---|---|
| NAME (*PLEASE PRINT*) | | NAME (*PLEASE PRINT*) | |
| ADDRESS | | ADDRESS | |
| TELEPHONE NUMBER ( ) | BADGE/ID NUMBER / AGENCY/DIVISION | TELEPHONE NUMBER ( ) | BADGE/ID NUMBER / AGENCY/DIVISION |

## NARRATIVE

Describe in detail the facts, observations, and circumstances that led to the stop or contact. Print or write directly on this page.
A portion of another report may be **cut and pasted** below but should be dated and contain an original signature.
Attach arrest, collision, and/or supplemental report(s) if available.
If arrest was made per CVC **§40300.5** state the facts and circumstances that support the arrest.
**DUI Probation Violations:** Indicate below how you determined the driver was on DUI probation.

On 11/01/2024 at approximately 0055 hours, I was on duty, in full tan California Highway Patrol (CHP) uniform, driving a fully marked CHP patrol vehicle (1633363). My partner, Officer Melano ID 023054, was seated in the right front passenger of my patrol vehicle, also in full tan CHP uniform. We were traveling eastbound on I-580, just west of Isabel Avenue, when we came upon a Gray Tesla Model Y (S/V) on the right shoulder of I-580, just west of Isabel Avenue. I proceeded to park my patrol vehicle right behind the Tesla on the right shoulder to make a welfare check on the Tesla. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist. I knocked on the right front passenger side window of the Tesla and the subject woke up. The subject seemed very confused and disoriented. I contacted the subject through the open right passenger side door and I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle. I asked the subject if he was okay, and he related yes. The subject related he was on a parking lot, and I proceeded to informed him he was not in a parking lot, and he was on the side of the freeway. I asked the subject how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the subject if he had consumed any alcoholic beverages, and he related no. I conducted a DUI evaluation on the subject and at 0112 hours, I placed the subject (Newanforbi) under arrest for a violation of California Vehicle Code section 23152(a), driving while under the influence of alcohol, per 40300.5 VC.

S.M 11/1/24



# AGE 21 AND OLDER ADMINISTRATIVE PER SE SUSPENSION/REVOCATION ORDER AND TEMPORARY DRIVER LICENSE

DS 367



A Public Service Agency

Driver **must** be given a copy of this order. **DMV telephone number (916) 657-0214.**

| LAW ENFORCEMENT AGENCY CASE NUMBER | DETENTION/ARREST DATE | FOR DMV USE ONLY |
|---|---|---|

| DRIVER NAME (*LAST, FIRST, M.I.*) | DRIVER LICENSE NUMBER | COMMERCIAL? ☐ Yes ☐ No | STATE |
|---|---|---|---|
| MAILING ADDRESS | STATE | ZIP CODE | |
| DATE OF BIRTH | SEX | HAIR | EYES | HEIGHT | WEIGHT |

**Arrest Type**
For statistical purposes only. Check all that apply.
☐ Alcohol Use
☐ Cannabis Use
☐ Other Drug Use

**LICENSE:** ☐ Suspended/Revoked ☐ Surrendered (*Attached*) ☐ Not in Possession ☐ Unlicensed

**VIOLATION:** ☐ 0.08% or more BAC Chemical Test Results ☐ 0.01% or more BAC (*DUI Probation*) ☐ 0.04% or more BAC (*Commercial Vehicle*)
☑ Chemical Test Refusal (*Complete Reverse*) ☐ PAS or other Chemical Test Refusal (*DUI Probation*) (*Complete Reverse*)

**You are hereby notified that your privilege to operate a motor vehicle will be suspended or revoked effective 30 days from the issue date of this order as shown below, and until you pay a $125 reissue fee and file proof of financial responsibility as shown on the reverse.**

**For additional information call (916) 657-0214.**

## TEMPORARY DRIVER LICENSE

This document must be carried with you and shall serve as your temporary California driver license. It is subject to the same class(es) and all restrictions as your permanent driver license. **This temporary driver license does not provide you with any driving privileges if you do not have a California driver license or your license is expired, suspended, revoked, canceled, or denied.** It expires at midnight 30 days from the issue date of this order shown below.

This action is taken under authority of *California Vehicle Code* (CVC) §§13353, 13353.1, 13353.2 and 13389 because you were arrested or detained for driving under the influence of alcohol and/or drugs and:

| | |
|---|---|
| **BAC 0.01% PAS, Breath, Blood or Urine Test DUI Probation** | You completed a PAS, breath, blood, or urine test and the officer believes the results will show 0.01% BAC or more. If the laboratory results show your BAC was less than 0.01%, this suspension will be set aside. Your driver license will be reissued to you if you do not have another suspension or revocation in effect. |
| **BAC 0.08% Breath, Blood, or Urine Test** | You completed a breath test with 0.08% BAC or more, or you completed a blood or urine test and the officer believes the results will show 0.08% BAC or more. If the laboratory results show that your BAC is less than 0.08%, this suspension or revocation will be set aside. Your driver license will be reissued to you if you do not have another suspension or revocation in effect. |
| **BAC 0.04 % Breath, Blood or Urine Test while driving a Commercial Vehicle** | You completed a breath test with 0.04% BAC or more, or you completed a blood or urine test and the officer believes the results will show 0.04% BAC or more. If the laboratory results show that your BAC is less than 0.04%, this suspension or revocation will be set aside. Your driver license will be reissued to you if you do not have another suspension or revocation in effect. |
| **Chemical Test Refusal** | You refused to submit to, or failed to complete, a chemical test of the alcohol and/or drug content of your blood. |

## COMMERCIAL DISQUALIFICATION

**A commercial disqualification action will be taken due to any of the following: if you refused a chemical test, if you had a 0.04% BAC or more while operating a commercial motor vehicle as defined in CVC §15210 or while transporting hazardous materials, or held a commercial driver license and were driving any vehicle when you had a 0.08% BAC or more.**

## HEARING INFORMATION

YOU HAVE **10 DAYS** FROM RECEIPT OF THIS NOTICE TO REQUEST A HEARING TO SHOW THAT THE SUSPENSION OR REVOCATION IS NOT JUSTIFIED. ***The suspension or revocation will not be stayed (delayed) unless you request a hearing within 10 DAYS from the issue date of this order and DMV cannot provide a hearing before the effective date of the suspension or revocation and make a determination.*** Hearings are conducted only to determine questions of fact as described on the reverse. Your need for a license cannot be considered at a hearing. **If you want a hearing or have questions regarding this matter, contact the DMV at (916) 657-0214.** A telephone hearing will be conducted unless you request an in-person hearing. Before the hearing you may see or obtain copies of the department's evidence. ***You must request copies of the department's evidence at least 10 DAYS prior to the date set for commencement of the hearing in order to receive them prior to the hearing date.*** If you want the information released to someone else, give them signed permission. ***You have the right to have a sign or language interpreter present at your hearing. If you require the service of an interpreter, immediately notify DMV of the need for such service. During the hearing*** you may present oral testimony and/or other evidence. Testimony is taken under oath or affirmation, and the hearing is recorded. You may be represented by legal counsel, or you may represent yourself. The arresting officer(s) may be subpoenaed in this matter, if it is determined that his or her testimony is needed. If you wish to question the arresting officer(s), you have the right to have subpoenas issued on your behalf. You may subpoena any other witness(es) you feel may help your case, and you have the right to cross-examine any opposing witness(es). Blank subpoenas may be obtained on the internet at the following address ***http://www.dmv.ca.gov/portal/dmv/detail/forms/formsds*** or provided to you by the hearing officer upon request prior to the hearing. You are responsible for service of your subpoena(s) and any witness fee required by law. ***After the hearing,*** the hearing officer shall make findings and render a decision.

| OFFICER'S PRINTED NAME | BADGE/ID NUMBER | TELEPHONE NUMBER ( ) |
|---|---|---|
| AGENCY | AREA | COURT CODE (*IF UNKNOWN, COURT NAME*) |

I ☐ **did** ☐ **did not** personally serve a copy of the Order of Suspension/Revocation to the driver.

Date / / Signature of **Arresting** Officer X

**ORDER SERVED BY ANOTHER OFFICER:** If order was served on driver by **another Officer** have that officer complete this section.
**I personally served a copy of the order to the driver on the date shown below:**

| Date | Serving Officer's *Printed* Name | Badge/ID Number | Signature Of Serving Officer |
|---|---|---|---|
| / / | | | X |

**AGO 000042**



*continued on reverse*

# CHEMICAL TEST ADMONITION

(CVC §§23154, 23612)

I admonished the driver on date: 11 / 1 / 24 at 0130 ☒ AM ☐ PM

1. You are required by state law to submit to and complete a chemical test to determine the alcohol and/or drug content of your blood.
2. Because I believe you are under the influence of alcohol or a combination of alcohol and drugs, you have a choice of taking a breath or blood test. If you are on DUI Probation you are required to submit to a Preliminary Alcohol Screening Test.
3. Availability of Tests. (*Read only when applicable.*)
   - ☐ **When Applicable:** Since the breath and blood tests are unavailable; you are incapable of completing a breath or blood test; or you are afflicted with hemophilia or are using an anticoagulant medication, you are deemed to have given your consent to chemical testing of your urine.
   - ☐ **When Applicable:** Since you need medical treatment, your choice is limited to the (*check all available*) ☐ blood, ☐ breath, and/or ☐ urine test(s), the only test(s) available at _____.
4. If you refuse to submit to, or fail to complete a chemical test, your driving privilege **will** be administratively suspended for **one year** or administratively revoked for **two or three years** by the Department of Motor Vehicles. A second offense within ten years of a separate violation of driving under the influence, including such a charge reduced to reckless driving, or vehicular manslaughter, or a violation of CVC §23140, which resulted in a conviction, or separate administrative determination that you were driving with a BAC of 0.01% or more while under age 21; or a separate administrative determination that you were driving with a BAC of 0.01% or more while on DUI probation, or a BAC of 0.04% or more while operating a commercial motor vehicle, or a BAC of 0.08% or more at any age, or you refused a test, will result in a two-year administrative revocation. Three or more offenses within ten years of any combination of the above violations, convictions or separate administrative determinations will result in a three-year administrative revocation.
5. Refusal or failure to complete a chemical test may be used against you in court.
6. Refusal or failure to complete breath or urine testing will result in a fine and mandatory imprisonment if you are convicted of a violation of CVC §§23152 or 23153.
7. You do not have the right to talk to an attorney or have an attorney present before stating whether you will submit to a test, before deciding which test to take, or during the test.
8. If you cannot, or state you cannot, complete the test you choose, you must submit to and complete a remaining test.

**DRIVER RESPONSE:** Include statements or actions by the driver that indicate a refusal or failure of each test.

☐ **Will you take a Preliminary Alcohol Screening Test?** (*DUI Probation*) _____

☐ **Will you take a Breath Test?** _____

☐ **Will you take a Blood Test?** _____

**TEST UNAVAILABLE:** One or more tests were unavailable. ☐ PAS test unavailable ☐ Breath test unavailable ☐ Blood test unavailable

**Explain:**

**LANGUAGE:** If not given in English, admonition was given in ☐ Spanish ☐ Other language (*specify*):

**Admonition Read by a Different Officer:** If the above Chemical Test Admonition was read to arrestee by another officer, indicate that officer's information:

| OFFICER NAME | BADGE/ID NUMBER | AGENCY /DIVISION | TELEPHONE NUMBER |
|---|---|---|---|
| | | | ( ) |

## DRUG ADMONITION

1. Because I believe you are under the influence of drugs or a combination of drugs and alcohol, you are required by state law to submit to a blood, breath, or urine test. A urine test is available only if you are afflicted with hemophilia or are using an anticoagulant medication.
   - ☐ **When Applicable:** Because you have already submitted to or refused or failed to complete a breath test **or** a breath test is unavailable, your choice is limited to a blood test or a urine test, when applicable.
2. If you refuse to submit to, or fail to complete a chemical test, your driving privilege **will** be administratively suspended for **one year** or administratively revoked for **two or three years**, by the Department of Motor Vehicles. A second offense within ten years of a separate violation of driving under the influence, including such a charge reduced to reckless driving, or vehicular manslaughter, or a violation of CVC §23140, which resulted in a conviction, or separate administrative determination that you were driving with a BAC of 0.01% or more while under age 21, or a separate administrative determination that you were driving with a BAC of 0.01% or more while on DUI probation, or a BAC of 0.04% or more while operating a commercial motor vehicle, or a BAC of 0.08% or more at any age, or you refused a test, will result in a two-year administrative revocation. Three or more offenses within ten years of any combination of the above violations, convictions or separate administrative determinations will result in a three-year administrative revocation.
3. Refusal or failure to complete a chemical test may be used against you in court.
4. Refusal or failure to complete breath or urine testing will result in a fine and mandatory imprisonment if you are convicted of a violation of CVC §§23152 or 23153.
5. You do not have the right to talk to an attorney or have an attorney present before stating whether you will submit to a test, before deciding which test to take, or during the test.

**DRIVER RESPONSE:** Include statements or actions by the driver that indicate a refusal or failure of each test.

☐ **Will you take a Blood Test?** _____

☐ **Will you take a Urine Test?** _____

**TEST UNAVAILABLE:** One or more tests were unavailable. ☐ Blood test unavailable ☐ Urine test unavailable

**Explain:**

**LANGUAGE:** If not given in English, admonition was given in ☐ Spanish ☐ Other language (*specify*):

**Admonition Read by a Different Officer:** If the above Drug Admonition was read to arrestee by another officer, indicate that officer's information:

| OFFICER NAME | BADGE/ID NUMBER | AGENCY/DIVISION | TELEPHONE NUMBER |
|---|---|---|---|
| | | | ( ) |

*continued on next page*

# County of Alameda

## DAILY

## DECLARATION AND DETERMINATION
## Probable Cause for Warrantless Arrest

| Arrestee/Suspect | DOB | Sex | PFN |
|---|---|---|---|
| BRENDAN NEWANFORBI | 09/16/1996 | M | BOC470 |

| Race | CDL | Agency Report # |
|---|---|---|
| BLACK | F7953179 CA | RJ68845 |

| Arresting Agency | Declarant | Agency Phone | Agency Fax |
|---|---|---|---|
| CALIFORNIA HIGHWAY PATROL, DUBLIN | SANTIAGO MEZA-GONZALES | (925) 828-0466 | |

| Arrest Date | Arrest Time | Arrest Location |
|---|---|---|
| 11/01/2024 | 01:12:00 | |

| Holds | Arrestee Home Address |
|---|---|
| | |

Charges/Violations

VC 23152(A) M(1 Counts)

On 11/01/2024 at approximately 0055 hours, I was on duty, in full tan California Highway Patrol (CHP) uniform, driving a fully marked CHP patrol vehicle (1633363). My partner, Officer Melano ID 023054, was seated in the right front passenger of my patrol vehicle, also in full tan CHP uniform. We were traveling eastbound on I-580, just west of Isabel Avenue, when we came upon a Gray Tesla Model Y (S/V) on the right shoulder of I-580, just west of Isabel Avenue. I proceeded to park my patrol vehicle right behind the Tesla on the right shoulder to make a welfare check on the Tesla. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist. I knocked on the right front passenger side window of the Tesla and the subject woke up. The subject seemed very confused and disoriented. I contacted the subject through the open right passenger side door and I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle. I asked the subject if he was okay, and he related yes. The subject related he was on a parking lot, and I proceeded to informed him he was not in a parking lot, and he was on the side of the freeway. I asked the subject how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the subject if he had consumed any alcoholic beverages, and he related no. I conducted a DUI evaluation on the subject and at 0112 hours, I placed the subject (Newanforbi) under arrest for a violation of California Vehicle Code section 23152(a), driving while under the influence of alcohol, per 40300.5 VC.

I declare under penalty of perjury that the above information was obtained through official police channels and is contained in the above-mentioned police report. Executed in the County of Alameda, State of California. Identity and signature of declarant verified by CRIMS.

Date: 11/01/2024 21:58:43 Declarant: SANTIAGO MEZA-GONZALES Badge: 023295

On the basis of the foregoing declaration, I hereby determine that there is/is not probable cause to detain this arrestee.

Date: Judge:

| Disposition Date | Disposition |
|---|---|
| | ( ) |



Document #: PCD913527

AGO 000044

STATE OF CALIFORNIA
DEPARTMENT OF CALIFORNIA HIGHWAY PATROL
NOTICE TO APPEAR
CHP 215 (REV. 01-24)

RJ68845

**NOTICE TO:**
☐ APPEAR IN COURT AT TBD ☐ AM ☐ PM ON:
OR
☐ RESPOND TO CITATION **BEFORE:**
☑ To be notified
**DATE:** I / B / D
*See back for detailed instructions*

WHERE: ☑ SUPERIOR COURT ☐ JUVENILE
ADDRESS: 5151 GLEASON DR DUBLIN CA 94568
PHONE NO.: 925 277 6700
COURT'S WEBSITE: http://www.courts.ca.gov/find-my-court.htm
**ACT BY THIS DATE TO AVOID A WARRANT OR ADDED FEES**

| Date of Violation (mm/dd/yy) | Time | Day of the Week | |
|---|---|---|---|
| 11/1/24 | 0112 ☑ AM ☐ PM | S M T W T (F) S | ☐ 215S ☐ Crash |

Name (first, middle, last): BRENDAN NGEMSI NEWANFORBI
Current Address (no., street): 1455 CAT TAIL DR
City: STOCKTON State: CA Zip Code: 95204
Driver's License Number (all states): F7953179 State: CA Commercial ☐ Y ☑ N Insurance ☑ Y ☐ N Date of Birth (mm/dd/yy): 9/16/96
Sex: M Hair: BLK Eyes: BRN Height: 508 Weight: 225 Race / Ethnicity: B ☐ Commercial Vehicle (§15210(b) CVC) ☐ Hazardous Material (§353 CVC)
Vehicle License/VIN: 9EAX768 State: CA Reg. Exp.: 01/25
Year of Veh.: 23 Make: TESLA Model: Y Body Style: SUV Color: GRY Veh. Type: 07
Registered Owner/Lessee ☐ Same as driver ☐ Owner's responsibility (§40001 CVC): PV HOLDING CORP
Address (no., street, city, state, zip) ☐ Same as driver: 5721 W. 96TH ST, LOS ANGELES, CA 90045
Reason for Stop: NON-EMERGENCY STOP ON FWY CHP / DOT / PUC / ICC

**CITATION DETAILS** ☐ Booking Required *(see reverse)*

| Correctable (Fix-It) | Code/Section | Description | M = Misdemeanor I = Infraction (circle) |
|---|---|---|---|
| ☐ Y ☑ N | 23152(a) VC | - DUI | (M) I |
| ☐ Y ☐ N | | | M I |
| ☐ Y ☐ N | | | M I |
| ☐ Y ☐ N | | | M I |

| Approx. Speed | PF/Max. Speed | Vehicle Limit | Safe Speed | Special |
|---|---|---|---|---|
| | | | | |

Location of Violation: E/B 580 W/O ISABEL AVE City/County of Occurrence: LIVERMORE

| Beat | Area | Perm. Area | ☑ Radar / Lidar Unit / Patrol Vehicle Number | ☑ MVARS |
|---|---|---|---|---|
| 52 | 390 | | 3363 | |

☑ Violations not committed in my presence, declared on information and belief (§40600 CVC)
**I declare under penalty of perjury under the laws of the State of CA that the foregoing is true and correct.**

SAME (DECL. DATE) S. MEZA-GONZALES (ARRESTING OR CITING OFFICER) 23295 (I.D. NO.)

DECL. DATE | ARRESTING OFFICER, (if different from above) | PERM AREA | I.D. NO.

**I promise to act by the date at the top of this citation. Signing DOES NOT admit guilt.**

( ) CELLPHONE - OPTIONAL *(may be used for reminders)*
EMAIL - OPTIONAL *(may be used for reminders)*

X IN CUSTODY
SIGNATURE

RJ68845

Form Adopted for Mandatory Use
Judicial Council of California
TR-130, Traffic/Nontraffic Notice to Appear
§§40500(b), 40513(b), 40522,
40600 CVC; Pen. Code, §853.9
[Rev. Jan. 1, 2024]

*RJ68845*

SEE REVERSE

+ ☐ 1A ☐ 1B

**ALAMEDA COUNTY CONSOLIDATED ARREST REPORT** CALIFORNIA HIGHWAY PATROL, DUBLIN 01991

| Defendant's MRN Name | MRN PFN | Report Number | |
|---|---|---|---|
| | | RJ68845 | There is no photo on file. |

| Defendant's Last Name | First | Middle | Gen | PFN |
|---|---|---|---|---|
| NEWANFORBI | BRENDAN | NGEHSI | | |

| AKA / Nickname | Juvenile/ Arrest # | AJIS No. |
|---|---|---|
| | | |

| DOB | Age | POB | Height | Weight | Hair |
|---|---|---|---|---|---|
| 09/16/1996 | | CM | 508 | 225 | BLACK |

| Eyes | Race | Sex | Facial Hair | Marital Status | Pregnant | Photo Taken |
|---|---|---|---|---|---|---|
| BROWN | BLACK | MALE | Unshaven | | | |

| Arrest Date | Arrest Time | Salient Characteristics (SMT's) | ID Confirmed by |
|---|---|---|---|
| 11/01/2024 | 01:12 | | |

| Home Address | Court Date/Time |
|---|---|
| 1455 CAT TAIL DR STOCKTON CA 95204 | |

| Business / School Name | Business / School Address | Total Bail |
|---|---|---|
| | | |

| Home Phone | Business Phone | Cell Phone | Driver's License # | Social Sec # | Occupation |
|---|---|---|---|---|---|
| | | | F7953179 CA | | |

| CII # | FBI # | CMS Incident No | Keeper |
|---|---|---|---|
| | | | N |

Electronic Account Type and Value

Misc ID #

Clothing

BLACK SHIRT, GREEN PANTS, GRAY SLIDES

| Code Section | Attempted | M/F | Count | Court | CIR | Warrant # | CEN | Bail |
|---|---|---|---|---|---|---|---|---|
| 23152(A) VC | N | M | 1 | | 01 | | | |

| Location of Arrest | Court Jurisdiction |
|---|---|
| (I-580 EB WO ISABEL ON RHS) | East County HOJ |

Arresting Officer

SANTIAGO MEZA-GONZALES 023295

Transporting Officer

SANTIAGO MEZA-GONZALES 023295

| Submitting Officer / Badge# / Agency | Agency Phone | Agency Fax | Duty Station |
|---|---|---|---|
| SANTIAGO MEZA-GONZALES / 023295 / CALIFORNIA HIGHWAY | (925) 828-0466 | | |

Notes

| Admonished | By Name | Rights Waived | Words of Invocation / Reason Not Admonished |
|---|---|---|---|
| | | | |

Modus Operandi

STATE OF CALIFORNIA
DEPARTMENT OF CALIFORNIA HIGHWAY PATROL

# VEHICLE REPORT

CHP 180 (Rev. 4-16) OPI 061

NOTE: CHP 180 IS FURNISHED TO ALL PEACE OFFICERS BY THE CALIFORNIA HIGHWAY PATROL

AC 13903

| REPORTING DEPARTMENT | LOCATION CODE | DATE / TIME OF REPORT | NOTICE OF STORED VEHICLE DELIVERED PERSONALLY | FILE NO. |
|---|---|---|---|---|
| CHP DUBLIN | 390 | 11/01/24 @ 0115 | ☐ | |

| LOCATION TOWED / STOLEN FROM | ODOMETER READING | VIN CLEAR IN SVS? | LIC. CLEAR IN SVS? | DATE / TIME DISPATCH NOTIFIED | LOG NO. |
|---|---|---|---|---|---|
| E/B 580 W/O ISABEL | 31,745 | ☒ YES ☐ NO | ☒ YES ☐ NO | 11/01/24 @ 0153 | 0064 |

| YEAR | MAKE | MODEL | BODY TYPE | COLOR | LICENSE NO. | ☐ ONE ☒ TWO | MONTH / YEAR | STATE |
|---|---|---|---|---|---|---|---|---|
| 23 | TESLA | Y | SUV | GRY | 9EAX768 | | 01/25 | CA |

VEHICLE IDENTIFICATION NO.: 7SAYGDEE3PF638736

ENGINE NO.:

VALUATION BY ☒ OFFICER ☐ OWNER
☐ 0-500 ☐ 501-4000 ☒ 4001+ ☐ $ _____

**REGISTERED OWNER**
PV HOLDING CORP
5721 W. 96TH ST
LOS ANGELES, CA 90045

☐ SAME AS R/O

**LEGAL OWNER**
THE BANK OF NEW YORK MELLON
TRUST COMPANY NA
26933 NORTHWESTERN HWY S100
SOUTHFIELD, MI 48033

☒ STORED ☐ IMPOUNDED ☐ RELEASED ☐ RECOVERED - VEHICLE / COMPONENT

TOWING / STORAGE CONCERN *(NAME, ADDRESS, PHONE)*
925-888-8880
UNITED TOWING, 1113 GREENVILLE RD, LIVERMORE, CA 94550

STORAGE AUTHORITY / REASON
22651(h)(1) VC TOW FIRST

REASON FOR STOP
11-26

AIRBAG? ☒ YES ☐ NO ☐ 1 ☒ 2

DRIVEABLE? ☒ YES ☐ NO ☐ JUNK ☒ JUNK

VIN SWITCHED? ☐ YES ☒ NO

| CONDITION | YES | NO | ITEMS | YES | NO | ITEMS | YES | NO | ITEMS | YES | NO | TIRES / WHEELS | CONDITION |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| WRECKED | | X | SEAT (FRONT) | X | | REGISTRATION | X | | CAMPER | | X | LEFT FRONT | FAIR |
| BURNED HULK per 431(c) CVC | | X | SEAT (REAR) | X | | ALT. / GENERATOR | | X | VESSEL AS LOAD | | X | RIGHT FRONT | 1 |
| VANDALIZED | | X | RADIO | X | | BATTERY | X | | FIREARMS | | X | LEFT REAR | |
| ENG. / TRANS. STRIP | | X | TAPE DECK | | X | DIFFERENTIAL | | | OTHER | | X | RIGHT REAR | |
| MISC. PARTS STRIP | | X | TAPES | | X | TRANSMISSION | X | | | | | SPARE | NONE |
| BODY METAL STRIP | | X | OTHER RADIO | | X | AUTOMATIC | X | | | | | HUB CAPS | NONE |
| SURGICAL STRIP per 431(b) CVC | | X | IGNITION KEY | X | | MANUAL | | X | | | | SPECIAL WHEELS | NONE |

RELEASE VEHICLE TO: ☒ R/O OR AGENT ☐ AGENCY HOLD ☐ 22850.3 CVC

GARAGE PRINCIPAL / AGENT STORING VEHICLE *(SIGNATURE)*

DATE / TIME: 11/1/24 0115

| NAME OF PERSON / AGENCY AUTHORIZING RELEASE | I.D. NO. | DATE |
|---|---|---|
| | | |

SIGNATURE OF PERSON AUTHORIZING RELEASE

CERTIFICATION: I, THE UNDERSIGNED, DO HEREBY CERTIFY THAT I AM LEGALLY AUTHORIZED AND ENTITLED TO TAKE POSSESSION OF THE ABOVE DESCRIBED VEHICLE.

SIGNATURE OF PERSON TAKING POSSESSION

☐ STOLEN VEHICLE / COMPONENT ☐ EMBEZZLED VEHICLE ☐ PLATE(S) REPORT

| DATE / TIME OF OCCURRENCE | DATE / TIME REPORTED | NAME OF REPORTING PARTY (R/P) | DRIVER LICENSE NO. / STATE |
|---|---|---|---|
| | | | |
| **LAST DRIVER OF VEHICLE** | **DATE / TIME** | **ADDRESS OF R/P** | **TELEPHONE OF R/P** |
| | | | ( ) |

I CERTIFY OR DECLARE UNDER PENALTY OF PERJURY UNDER THE LAWS OF THE STATE OF CALIFORNIA THAT THE FOREGOING IS TRUE AND CORRECT.

SIGNATURE OF PERSON MAKING REPORT

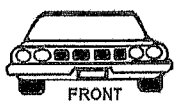
## REMARKS

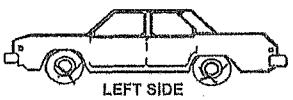
[LIST PROPERTY, TOOLS, VEHICLE DAMAGE, ARRESTS]

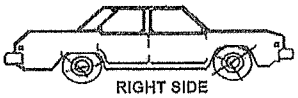
F7953179

| DRIVER'S NAME | ARRESTED / SECTION? | REPORTED BY | CARGO / TYPE? | VALUE $ |
|---|---|---|---|---|
| BRENDAN NGEHSI | ☒ YES ☐ NO 23152(a) VC | C18-088 | ☐ YES ☒ NO | ☐ BILL OF LADING ATTACHED |

NEW ANFORBIE, x2
PROPERTY: MISC BAG, POWER INVERTER, MISC CLOTHES, LAPTOP, STUFF ANIMAL, MISC ELECTRICAL ACCESSORIES, WIRELESS EAR PHONE CASE, MISC COLOGNE
DAMAGE: MISC. DENTS AND SCRATCHES, WHEELS CURB RASHED











AGO 000047

| SIGNATURE OF OFFICER TAKING REPORT | I.D. NO. | SUPERVISOR | REQUIRED NOTICES SENT TO REGISTERED ☐ YES | DATE NOTIFIED |
|---|---|---|---|---|
| | | | | |

# SUPERIOR COURT OF CALIFORNIA
## County of Alameda

## SEARCH WARRANT
## DUI Blood Draw
Penal Code § 1524(a)(13)

**The People of the State of California** **Warrant No:**

**To any peace officer in California:** **Report No:** RJ68845

**Name of arrestee:** NEWANFORBI, BRENDAN NGEHSI **DOB:** 09/16/1996

**PFN:** **SSN:** **DL #:** **DL State:**

**Numerical identifier:**

**Vehicle Code violation:** ☑ 23152 ☐ 23153 ☐ 23140

The affidavit below, which was sworn to and subscribed before me on this date, has established the following:

(1) At the date and time listed in the affidavit, the arrestee was lawfully arrested in the above county for the above offense(s) and the arrestee remains in custody.

(2) There is probable cause to believe that laboratory testing of a sample of the arrestee's blood will produce relevant evidence as to arrestee's guilt or innocence.

You are therefore ordered to promptly obtain a sample of the arrestee's blood and submit the sample to an approved laboratory for the purpose of determining its alcohol and/or drug content. This sample shall be obtained in a medically approved manner by a person who is certified to draw blood. Because this warrant authorizes a search for evidence that is constantly dissipating, it may be executed at any hour of the day or night. Pursuant to *Carleton v. Superior Court* (1985) 170 Cal.App.3d 1182, 1192 ["to restrain a defendant reasonable force may be necessary to properly withdraw a blood sample from an actively resisting defendant"], if the arrestee actively resists the execution of this warrant, and if officers have notified the arrestee that a warrant for this procedure has been issued, they may use reasonable force to obtain the evidence.

Date: 11/01/2024 02:34:50 Judge of the Superior Court: *Judge Amy Sekany*

## ♦ AFFIDAVIT ♦

**Name of affiant:** SANTIAGO MEZA-GONZALES

**Affiant's agency:** CALIFORNIA HIGHWAY PATROL, DUBLIN

**Date of arrest:** 11/01/2024 **Time of arrest:** 01:12

I am a law enforcement officer employed by the above agency. On the above date and approximate time I arrested the above-named arrestee for the above Vehicle Code offense and the arrestee has remained in custody. The arrest was based on the following circumstances that were witnessed by me or, where indicated, were witnessed by another officer who informed me of the circumstance:

On 11/01/2024, at approximately 0055 hours, I was on patrol in full tan CHP uniform seated in the driver seat of a fully marked California highway Patrol (CHP) patrol vehicle (1633363) with my partner Officer Melano ID 23054, who was seated int the right front passenger seat of our patrol vehicle in the city of Livermore, county of Alameda. I observed a gray Tesla SUV parked on the right shoulder of I-580 eastbound, west of Isabel Avenue, and I proceeded to make a welfare check on the vehicle. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist. I knocked on the right front passenger side window of the Tesla and the male woke up. The male seemed very confused and disoriented. I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle through the open right passenger side door. I asked the male if he was okay, and he related yes. The male related he was on a parking lot, and I proceeded to informed him he

**Warrant No:**

**Name of arrestee:** NEWANFORBI, BRENDAN NGEHSI

**Name of affiant:** SANTIAGO MEZA-GONZALES

**Affiant's agency:** CALIFORNIA HIGHWAY PATROL, DUBLIN

was not in a parking lot, and he was on the side of the freeway. I asked the male how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the male if he had consumed any alcoholic beverages, and he related no. I asked the male to exit the Tesla. I asked the male if he had consumed any alcoholic beverages since stopping at that location and he related no. I asked the male if he had a driver license, and he gave me his California Driver License. I identified the male as Brendan Ngehsi Newanforbi D.O.B 09/16/1996 by his California Driver License ID F7953179. I asked Mr. Newanforbi a series of field sobriety test questions and while speaking with Mr. Newanforbi, I smelled the odor of an alcoholic beverage coming from Mr. Newanforbi's breath and person. I conducted a series of field sobriety tests on Mr. Newanforbi of which he did not perform as instructed or demonstrated. I arrested Mr. Newanforbi for 23152(a) VC - DUI at approximately 0112 hours. I advised Mr. Newanforbi of Implied Consent by reading the back of the DMV DS 367 page 1 verbatim (excluding paragraph 3 and 6). I gave Mr. Newanforbi the choice of submitting to a chemical breath test, blood test, or to refuse the tests. I advised Mr. Newanforbi there were additional administrative consequences from the DMV for refusing the chemical tests. Mr. Newanforbi chose to refuse any chemical testing.

**Declaration:** I declare under penalty of perjury that the foregoing is true.

Date: 11/01/2024 02:30:22 Affiant: SANTIAGO MEZA-GONZALES

Log # 64

Bay Area PL Services
(415) 300 - 4436
www.bayareapls.com

# FRM-401.2 BLOOD TEST REQUEST FORM

SECTION [23500-23702]
CALIFORNIA VEHICLE CODE (CVC)

TIME 02:03 CALL 02:18 ARRIVAL ___:___ DEPART.

REQUESTING COUNTY ☐ ALAMEDA ☐ CONTRA COSTA ☐ MARIN ☐ SAN FRANCISCO ☐ SAN MATEO ☐ SANTA CLARA

REQUESTING AGENCY DUBLIN CHP CASE NO RJ 68845

## SUBJECT DEMOGRAPHIC INFORMATION

L: NEWANFORBI
LA F: BRENDAN NGEHSI
DOB: 09/16/1996
__ Date & Time: 11/01/2024 @
FI Tech: A.GHALEB
Witness:
M

DATE OF BIRTH (DOB): __ __ / __ __ / __ __ __ __ (M M / D D / Y Y Y Y)

ID VERIFIED [ ]

## PHLEBOTOMIST NAME & CERT. NO

*Specimens may only be collected by persons authorized by Section 23158 of the California Vehicle Code as a clinical laboratory Phlebotomist; a person who has been issued a "Certified Phlebotomy Technician" license pursuant to Section 1246 of the Business and Professions Code*

FULL NAME: AZIZA GHALEB

CPT #: 02153315

SIGNATURE:

## SPECIMEN COLLECTION INFORMATION

COLLECTION DATE: 11/01/2024 (M M / D D / Y Y Y Y)

TIME OF DRAW: 0238

LOCATION OF DRAW: DUBLIN CHP (FACILITY)

COMPLETION STATUS:

☐ PHLEBOTOMY FEE - *IMPLIED CONSENT OR SIGNATURE OBTAINED*

☑ PHLEBOTOMY FEE + WARRANT - *RECEIVED COPY OF WARRANT W/ JUDGE'S NAME*

☐ DRY RUN - NO BLOOD COLLECTED - *CASE/LOG NO, AGENCY INFO, NOTES REQUIRED*

☐ DRY RUN - DISPATCH CANCELED CALL - *CASE/LOG NO, AGENCY INFO, NOTES REQUIRED*

☐ OTHER: _____

BLOOD DRAW ATTEMPTS: [1]

NOTES, *IF ANY:*

## SUBJECT STATEMENT BOX:

☐ N/A - IMPLIED CONSENT *per VC § 23612(a)(1)(A)*

*I, person subject listed above, do hereby consent and acknowledge the withdrawal of a blood sample from my body for selected blood tests. I also acknowledge that I have the right of refusal to submit the withdrawal of my blood but in doing so, there are additional penalties, consequences, and charges of my refusal and will be used against me in the court of law. I further certify that I am not a person who is afflicted with hemophilia, or afflicted with a heart condition, and/or taking an anticoagulant under supervision of a physician.*

x

SIGNATURE REQUIRED FOR SF COUNTY. IF REFUSED, WARRANT IS REQUIRED.

CHARGE(S): 23152(a)VC

REQUESTING PEACE OFFICER NAME & BADGE NO: MEZA 23795

SIGNATURE OF OFFICER: x

## OFFICER REQUEST ☑ THE APPROPRIATE BOXES AND INITIAL NEXT TO EACH BOX

S.M 1. The above listed person from whom the blood sample is to be obtained has been lawfully arrested for an offense allegedly committed in violation of Vehicle Code Section 23152 or 23153.

☐ 2. I believe that above listed person from whom the blood sample is to be obtained is in a condition rendering him/her incapable of refusal and is deemed not to have withdrawn his/her consent.

☐ 3. The above listed person from whom the blood sample is to be obtained is unconscious OR _____

S.M 4. There is a probable cause to believe that a test of the suspect's blood will yield relevant evidence in a criminal investigation.

☐ 5. The above listed person from whom the blood sample is to be obtained is a minor, and, according to California Attorney General, no parental consent is necessary to test a minor *(see 54 Ops.Cal. Atty.Gen.)*

S.M 6. The above listed person from whom the blood sample is to be obtained refuses to consent for a blood draw. (ATTACH COPY OF SIGNED WARRANT)

## PHLEBOTOMY CHECKLIST *INITIAL THE APPROPRIATE ITEMS 1-13*

PHLEBOTOMIST INITIALS | PEACE OFFICER INITIALS

1. Phlebotomist uses sealed collection kit supplied by the Forensic Laboratory. The Evidence Kit contains all of the following:

- One county-specific evidence envelope and additional forms, *if applicable*
- Bio-hazard specimen bag, tourniquet, sterile gauze, bandage, and bib
- One sealed 21G or 23G butterfly needle and hub
- Two vacutainer labels
- Tamper evident seal(s)
- One disinfectant prep pad *(circle one)*: BZK *or* POVIDONE IODINE
  LOT#: _____ EXP: ____/____ (Y Y Y Y / M M)
- Two gray top vacutainer tubes with sodium fluoride and potassium oxalate powder pre
  LOT#: _____ EXP: ____/____/____ (Y Y Y Y / M M / D D)

BZK LOT # 57209
BZK LOT EXP 2028/10/17
VAC LOT # 4011446
VAC LOT EXP 2026/01/31

AG S.M

AG 2. **WARRANT ISSUED:** If the subject did not give consent or it is a forced draw, do not proceed or touch the subject until a warrant is received.
*JUDGE'S FULL NAME:* Amy Sekany *or* ☐ *N/A* - warrant not required; IMPLIED consent or signature above. S.M

AG 3. Phlebotomist sanitizes workstation area(s) with BZK cleaning agent; allows to air dry. Disinfects hands with BZK soap, allows to air dry and dons gloves. Applies tourniquet, palpates suitable vein, ensures absence of pulse, and prepares venipuncture site with county-approved disinfectant prep pad. CAUTION: alcohol prep pads and hand sanitizer is strictly prohibited! S.M

AG 4. Phlebotomist performs the venipuncture in *LEFT / RIGHT* AC. Establishes blood flow, confirming that the blood is venous and dark in color, and Phlebotomist asks 'TIME CHECK' from the Peace Officer. Collection date/time is notated from TIME CHECK. S.M

AG 5. Phlebotomist fills both tubes completely with blood, ensuring to immediately invert the tubes 8-10 times to mix the preservative and anticoagulant. Once both tubes are filled to maximum capacity, ensures to the remove the tourniquet within 1 minute of application. S.M

AG 6. Phlebotomist removes the final tube before withdrawing needle from the vein. Phlebotomist removes the needle from the subjects arm using a swift backward motion. While withdrawing the needle from the subjects skin, engages the safety mechanism, and presses down on the gauze over the puncture site with adequate pressure to avoid hematoma formation or asks competent subject to apply direct pressure over site keeping arm straight. S.M

AG 7. Phlebotomist assures that puncture site bleeding has stopped, applies band-aid or a piece of tape with gauze. Phlebotomist ensures the tubes are properly mixed with the preservative and anticoagulant and may invert again, if needed. S.M

AG 8. Phlebotomist fills out both vacutainer labels, at a minimum, the subject's full name, collection date, collection time, collector's initials, and gives labels to Witnessing Officer to add their initials. S.M

AG 9. Phlebotomist and Witnessing Officer compare label information matches evidence envelope and Blood Test Request Form to ensure accuracy of all information. After the accuracy of the labels is verified, they are affixed to the tubes by the Phlebotomist or Officer (depending on county protocol), ensuring to not cover the lot number and expiration date of the tubes. S.M

AG 10. Phlebotomist and Peace Officer complete the required information in their respective sections on the evidence envelope and Blood Test Request Form. Ensure all information is consistent, legible, and accurate. S.M

AG 11. Phlebotomist or Officer *(depending on county protocol)*, places the labeled blood test tubes into the evidence envelope and seals the envelope using the tamper-evident tape. Initials and date must be written across the seal and envelope itself. S.M

AG 12. All persons handling the evidence must make an entry on the chain of possession portion of the envelope with full name and date. The Phlebotomist transfers custody of the evidence envelope to the Peace Officer who will then annotate their name and date of receipt in the chain of possession section. After this point, the Phlebotomist is not allowed to handle the evidence envelope or re-open it for any reason. S.M

AG 13. Phlebotomist must perform infection control by wiping down workstation including, tables, chairs, floor mats, equipment, and frequently touched surfaces with BZK cleaning agent; allows to air dry completely. Properly dispose of all sharps in sharps containers and waste in appropriate receptacles. S.M

PHLEBOTOMIST USE ONLY
AIRTABLE LOG SUBMITTED? ☐

White - Police Agency | Yellow - Phlebotomist | Pink - Crime Lab *N/A San Francisco/Marin County*

# ALAMEDA COUNTY SHERIFF'S DEPARTMENT
# PRISONER PROPERTY RECEIPT

**No.** 2173094

Local Agency: OPD ☐ Other: _____

Local Agency No: _____

| Inmates Last Name | First | M.I. |
|---|---|---|
| PFN No. | Date | Property Release # 1 / Property Release # 2 |

| Cash Count | | | # 1 | # 2 |
|---|---|---|---|---|
| | X 100 | | | |
| | X 50 | | | |
| | X 20 | | | |
| | X 10 | | | |
| | X 5 | | | |
| | X 1 | | | |
| | | | | |
| | COIN | | | |
| TOTAL | | $ | | |

This form contains a complete list of property receipted for upon entering an Alameda County Jail.

| | |
|---|---|
| Inmate's Sig. X | ☐ Refused to Sign |
| Officer's Sig. X | Badge No. |

**No.** 2173094

I have received all of my property, clothing, and money.

| | |
|---|---|
| Inmate's Sig. X | Date |
| Officer's Sig. X | Badge No. |

**Property Release #1**

**Released Property To:**

Agency:

| Checked and Received By | Badge No. | Date |
|---|---|---|
| Officer's Sig. X | | |
| Inmate's Sig. X | | Release Date |
| Officer's Sig. X | | Badge/I.D. No. |

**Property Release #2**

**Released Property To:**

Agency:

| Checked and Received By | Badge No. | Date |
|---|---|---|
| Officer's Sig. X | | |
| Inmate's Sig. X | | Release Date |
| Officer's Sig. X | | Badge/I.D. No. |

Form 230-1

| All unclaimed property and money shall be disposed of as provided by law. | | PR # 1 | PR # 2 |
|---|---|---|---|
| Item | Description | | |
| Wallet | | | |
| Purse | | | |
| Misc. Papers | | | |
| Check / Savings Book | | | |
| Keys | | | |
| Watch ☐ WM ☐ YM | ☐ Man's ☐ Women's Make: | | |
| Ring ☐ WM ☐ YM | ☐ Man's ☐ Women's Color of Stone | | |
| Ring ☐ WM ☐ YM | ☐ Man's ☐ Women's Color of Stone | | |
| Other Jewelry ☐ WM ☐ YM | ☐ Man's ☐ Women's | | |
| Other Jewelry ☐ WM ☐ YM | ☐ Man's ☐ Women's | | |
| Earring ☐ WM ☐ YM | | | |
| Change: If less than $1.00 | | | |
| Rare or Foreign Coins | | | |
| Hat | | | |
| Coat | | | |
| Vest | | | |
| Shirt | BLACK | | |
| Tie | | | |
| Belt | | | |
| Pants | PFN | | |
| Shoes | BLACK | | |
| Dress | | | |
| Skirt | | | |
| Radio | | | |
| Luggage | | | |
| Medication | | | |
| Other | | | |
| | | | |
| | | | |
| | | | |
| | | | |
| | | | |
| Comments: | | | |
| | | | |
| | | | |
| | | | |
| | | | |
| | | | |

AGO 000051

Original - Inmate Yellow - County Jail Copy Pink - County Jail Copy Goldenrod - Originating Agency Copy

**Arrest File #:** 202400898 **Arrest Type:** M Misdemeanor **Status:** I Incomplete **Status Date:** 11/01/2

**Felny/Mis #:** 202400898 **Beat:** 052 I-580

**Arrest Date :** 11/01/2024 **Time :** 0112 **Officer ID:** 023295 Santiago Meza-gonzale

**Citation # :** RJ68845 **Arrest Loc :** I-580 EB WO ISABEL ON RHS **County :** Alameda

**Evidence# :** **Coll Log # :** **MVARS:** N **Release Status:**

**First Name :** BRENDAN **Middle Name:** NGEHSI **Last Name:** NEWANFORBI **Gen:**

## Person/Vehicle

**Address:** 1455 CAT TAIL DR
**City :** STOCKTON **State:** CA **Zip:** 95204 **Country:** US United States

**Race :** B Black **Sex:** M **Eye:** BRN **Hair:** BLK
**Weight :** 225 **Height:** 5-08
**DOB :** 09/16/1996 **Age:** 28 **SSN:**

**Driver Lic#:** F7953179 **Driver ST:** CA

**Veh. Lic# :** 9EAX768 **Veh. ST :** CA **VIN:** **Veh. Type:** 01
**Veh. Make :** Tesla
**Veh. Model :** Model Y
**Veh. Year :** 2023
**Veh. Color :** GRY

## Charges

**Court :** 01435 East County - Dublin
**Booking # :** CAR913358
**Where Booked:** Santa Rita Jail
**DUI Cost :** N **Juvenile:** N **SSP:** N

### Agency Number

| Code | Section Number | Type |
|---|---|---|
| VC | 23152(a) | M |

## Test Results

**PAS Device :**
**Pas Refused:** Y

### PAS Results

**CHP 202 DRE:**
**Trombetta Advised:**

| Test# | Type | Drug Test | Result | Received | Rf | Tr | NC |
|---|---|---|---|---|---|---|---|

## Disposition

**Case Status:**
**Status Date:**
**Filing Date:**
**Due Date :**

Docket # :

| Status Date | Status |
|---|---|

DUI Cost

Date 735 Received :
Date To Accounting:

| Officer ID | Officer Last Name | Activity Code | Activity Description | Hours |
|---|---|---|---|---|

MVARS

| DVD Item Number | DVD Date | Status | Status Date |
|---|---|---|---|

Aliases

| First Name | Middle Name | Last Name | Gen |
|---|---|---|---|

Victims / Witnesses

| Role | First Name | Middle Name | Last Name | Gen |
|---|---|---|---|---|

Status Change History

| | | -Status- | | -----Status Date------ | |
|---|---|---|---|---|---|
| Date Changed | User ID | Old | New | Old | New |
| 11/01/2024 04:59:27 | 023295 | | I | | 11/01/2024 |

Comments

# EXHIBIT C

Privilege Log: All Fifteen Entries

Copy reproduced for identification; admission and authentication remain required.

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E-mail: Vanessa.Ing@doj.ca.gov
*Attorneys for Respondent*
*California Highway Patrol*

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

| | |
|---|---|
| **BRENDAN NGEHSI NEWANFORBI,**<br><br>Petitioner,<br><br>**v.**<br><br>**CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the of the California Highway Patrol Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive,**<br><br>Respondents. | Case No. 26CV191136<br><br>**PRIVILEGE LOG IN SUPPORT OF RESPONDENT CALIFORNIA HIGHWAY PATROL'S RESPONSES TO PETITIONER'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE**<br><br>Dept: 25<br>Judge: The Honorable Jenna M. Whitman<br><br>Action Filed: May 29, 2026 |

| No. | Document Title | Bates Range | Privilege(s) Asserted |
|---|---|---|---|
| 1 | CHP 240 (Complaint Inquiry/Investigation) | AGO 000001 to AGO 000002 | Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5). |
| 2 | Civilians' Complaint Investigation, 390-26-002 | AGO 000003 to AGO 000009 | Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5); deliberative process privilege; official information privilege (Evid. Code § 1040). |
| 3 | Intake and Disposition Bureau Complaint Correspondence | AGO 000010–AGO 000016 | Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5). |
| 4 | POST email acknowledgment of public complaint | AGO 000017 | Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5). |
| 5 | Letter from CHP to Brendan N. Newanforbi, dated March 26, 2026 | AGO 000018 | Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5). |
| 6 | POST letter to Brendan Newanforbi, dated March 23, 2026 | AGO 000019 | Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5). |
| 7 | Agency Notification of Public Complaint - PUBLIC-26-000371 | AGO 000020 to AGO 000021 | Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5). |
| 8 | POST complainant's statement | AGO 000026–AGO 000028 | Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5). |
| 9 | May 9, 2026 Memorandum: Review of Wireless Mobile Video/Audio Recording System Video | AGO000055–AGO 000057 | Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5); deliberative process privilege; official information privilege (Evid. Code § 1040). |
| 10 | May 9, 2026 Memorandum: Interview with Officer Santiago Meza-Gonzales | AGO 000058–AGO 000060 | Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5); deliberative process |

| | | | |
|---|---|---|---|
| | | | privilege; official information privilege (Evid. Code § 1040). |
| 11 | CHP 240B, Civilians' Complaint Information | AGO 000062–AGO 000063 | Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5); deliberative process privilege; official information privilege (Evid. Code § 1040). |
| 12 | May 20, 2026, Interview with Officer Jose Melano | AGO 000064–AGO 000065 | Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5); deliberative process privilege; official information privilege (Evid. Code § 1040). |
| 13 | August 18, 2026 Letter from CHP to Brendan N. Newanforbi | AGO 000066 | Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5). |
| 14 | March 26, 2026 Letter from CHP to Brendan N. Newanforbi | AGO 000067 | Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5). |
| 15 | Return for query sent to CLETS | AGO 000068 to AGO 000072 | Pen. Code §§ 11140, 11142 (prohibiting disclosure of records maintained pursuant to Pen. Code § 11105). |

Dated: October 23, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
MARK R. BECKINGTON
Supervising Deputy Attorney General

*/s/ Vanessa Ing*
VANESSA K. ING
Deputy Attorney General
*Attorneys for Respondent*
*California Highway Patrol*

# EXHIBIT D

September 8 Filing Confirmation: Accepted Papers and Rejected Proof

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| SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA<br>**Branch Name:** Rene C. Davidson Alameda County Courthouse<br>**Mailing Address:** 1225 Fallon Street<br>**City, State and Zip Code:** Oakland CA 94612 | |
|---|---|
| **SHORT TITLE:** NEWANFORBI vs CALIFORNIA HIGHWAY PATROL, et al.<br><br>**NOTICE OF CONFIRMATION OF ELECTRONIC FILING** | **CASE NUMBER:**<br>26CV191136 |

The Electronic Filing described by the below summary data was reviewed and accepted by the Superior Court of California, County of ALAMEDA. In order to process the filing, the fee shown was assessed.

**Electronic Filing Summary Data**

Electronically Submitted By: One Legal ALA
Reference Number: 29210307
Submission Number: 26AA00239046
Court Received Date: 09/08/2026
Court Received Time: 8:33 am
Case Number: 26CV191136
Case Title: NEWANFORBI vs CALIFORNIA HIGHWAY PATROL, et al.
Location: Rene C. Davidson Alameda County Courthouse
Case Type: Civil Unlimited
Case Category: Writ - Administrative Mandamus
Jurisdictional Amount: Over $35,000
Notice Generated Date: 09/08/2026
Notice Generated Time: 10:47 am

| Documents Electronically Filed/Received | Status |
|---|---|
| Notice of Lodging (name extension) | Accepted |
| Declaration (name extension) | Accepted |
| Proof of Service (Electronic Service) | Rejected<br><br>Reject Reason(s):<br>Other: *** Improper formatting. Please refer to CRC 2.111 or review POS forms on the JCC site for formatting. https://courts.ca.gov/forms-rules/court-forms *** |

**Comments**
Submitter's Comments:

Clerk's Comments:

**Electronic Filing Service Provider Information**
Service Provider: One Legal ALA
Contact: One Legal
Phone: